EXECUTIVE OFFICE OF THE PRESIDENT
OFFICE OF THE U.S. TRADE REPRESENTATIVE

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SECTION 301 INVESTIGATION: BRAZIL'S ACTS, POLICIES, AND PRACTICES RELATED TO DIGITAL TRADE AND ELECTRONIC PAYMENT SERVICES; UNFAIR, PREFERENTIAL TARIFFS; ANTI-CORRUPTION ENFORCEMENT; INTELLECTUAL PROPERTY PROTECTION; ETHANOL MARKET ACCESS; AND ILLEGAL DEFORESTATION

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TUESDAY
JULY 7, 2026

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The Section 301 Committee convened at the U.S. International Trade Commission, Main Hearing Room, 500 E Street SW, Washington, D.C., at 10:00 a.m., Phillip Butler, Panel Chair, presiding.

PRESENT:

PHILLIP BUTLER, Office of the U.S. Trade Representative; Panel Chair
SARAH BONNER, Small Business Administration
TRACY CARSON, Department of Health and Human Services
CHRISTOPHER DI TROLIO, Department of Commerce
AYSHA GHADIALI, Department of Agriculture
RANDY HICKS, Department of Labor
TYLER HUBLER, Department of Agriculture
MICHAEL JARAND, Department of Treasury
DESI JORDANOFF, Small Business Administration
DAWN MAPATANO, Department of Health and Human Services
ANN MASON, Department of State
CHRISTINE MUMMA, Department of State
SABINA NEUMANN, Department of Agriculture

CLARE OTTING, Department of Commerce
REBECCA PANDOLPH, Department of Commerce
MEGAN PASTER, Office of the U.S. Trade Representative
TOBIAS REYNOLDS, Department of Commerce
SARAH SULLIVAN, Department of Treasury
PRISCILLA THOMPSON, U.S. International Trade Commission
RICHARD WESCH, Department of State

WITNESSES:

AMBASSADOR ROBERTO AZEVEDO
JOAO BARONI, Engemasa Engenharia e Materiais Ltda
MATTHEW BARRON, Sylvamo
PETER BARRY, WEG Electric Corp.
TIMOTHY BAUER, Amyris Inc.
PATRICK BLOOM, Cleveland-Cliffs Inc.
SEN. FLAVIO BOLSONARO
TIMOTHY BRIGHTBILL, Coalition of American Millwork Producers
JOE BROKING, Mesabi Metallics
HOMERO BUSNELLO, Tecumseh do Brasil Ltda
TESSA CAPELOTO, Century Aluminum
ALAIS COLUCH, Brazilian Association of Manufacturers of Ceramic Tiles, Sanitary Ware and Related Products
FABIO CRUZ, Centrorochas (Brazilian Natural Stone Association)
JAMES DURBIN, Portobello America
JANELLE EDMONDS, Wisenbaker Builder Services Inc.
BRANDON FARRIS, Steel Manufacturers Association
CELSO FIGUEIREDO, Sindicato da Industria do Ferro no Estado de Minas Gerais (SINDIFER); Klabin SA
JONATHAN GOLD, National Retail Federation
LAUREN GRAY, Dillard's Inc.
PETER GRUETERICH, JPT Group LLC Bernardo Footwear
JAMES HIEB, Natural Stone Institute (NSI)
NILS KAH, SHF Yachts LLC d/b/a Schaefer Yachts

MARK KAPLAN, Consolidated Mill Supply
WILTON JOSE MACHADO, Brasil Minerios
GIAN CARLO MARODIN, Ad Hoc Committee of Brazilian Moulding Producers
LETICIA SPERB MASSELLI, Abicalcados
WAGNER PARENTE, Brazilian Association of the Machinery and Equipment Industry (ABIMAQ); Brazilian Tree Industry (Iba)
MATT PRIEST, FDRA
PETE RUGGIERO, Crayola LLC
MARIO SANTANA, Associacao Brasileira da Industria de Madeira Processada Mecanicamente (ABIMCI)
ATOM SAVERSE, Isolatek International Corporation
BARRY SCHNEIDER, Steel Dynamics Inc.
R. COLBY SLAUGHTER, Rayonier Advanced Materials, Inc.
FERNANDO STAUDT, Altus Sistemas de Automacao SA
TIM TARPLEY, Energy Workforce & Technology Council
BRET VORHEES, Taurus Holdings Inc.

ALSO PRESENT:

TYRELL BURCH, International Trade Commission

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P-R-O-C-E-E-D-I-N-G-S

(10:38 a.m.)

MR. BUTLER: Good morning, and welcome to the Office of the United States Trade Representative, in conjunction with the Interagency Section 301 Committee, is holding this public hearing in connection with the Section 301 investigation of Brazil's acts, policies, and practices related to digital trade and electronic payment services, unfair preferential tariffs, anti-corruption enforcement, intellectual property protection, ethanol market access, and illegal deforestation initiated in accordance with specific direction of the President on July 15th, 2025.

On June 1s, 2026 the Trade Representative determined that certain of Brazil's acts, policies, and practices related to physical trade, and electronic payment services, unfair preferential tariffs, anti-corruption enforcement, intellectual property protection, ethanol market access, and illegal

deforestation are unreasonable, are discriminatory, and burden or restrict U.S. Commerce and are therefore actionable under Section 301 of the Trade Act of 1974.

Detailed information concerning this investigation is set out in Federal Register notices published on July 18th, 2025 at 90 Fed Reg 34069 and June 4th, 2026 at 91 Fed Reg 33854. The notices are, also, available on the USTR webpage under the Section 301 investigations page.

The purpose of this hearing is to receive public testimony regarding the proposed action to be taken in the investigation following the trade representatives determination of actionability. Consistent with the rules and procedures set forth in the June 4th, 2026 Federal Register notice, witnesses have provided USTR and the Section 301 Committee with a summary of their testimony in advance of today's hearing.

Should witness testimony address issues

beyond the scope of this hearing the Chair will ask the witness to redirect their testimony or conclude. The Section 301 Committee will carefully consider today's testimony, as well as all written comments in response to the Federal Register notice of determination.

The Section 301 Committee will then make a recommendation to the Trade Representative regarding any action to be taken in this investigation. Before we proceed with testimony, I will provide some procedural and administrative instructions. I will, then, ask the agency representatives participating in the hearing today to introduce themselves.

Please note that no cameras, or video, or audio recording will be allowed during the hearing. The hearing was scheduled for two days, and will conclude today, Tuesday, July 7th. A written transcript of the hearing, including testimony heard yesterday, will be posted on the USTR website, and on the Federal Register docket as soon as possible after the

conclusion of this hearing.

Yesterday we heard from Panels 1 through 7, and today we will hear from Panels 8 through 14. We will have a brief break between panels, a 45 minute to an hour break for lunch, and if time allows, a brief break in the afternoon.

Each witness appearing at the hearing is limited to five minutes of oral testimony, the light before you -- do we have lights in here? We don't have lights. For time? Will there by a timer? Okay, thank you. So, we will have a timer, but I will have to stop you after five minutes.

After the testimony for each panel of witnesses, the Section 301 Committee will have an opportunity to ask questions, all questions will be from agency representatives, there will be no questions accepted from the floor. Committee representatives will generally direct their questions to one or more specific witnesses.

We will not be accepting post hearing rebuttal comments for this hearing. Given the number of witnesses in the schedule, we request that witnesses when responding to questions be as concise as possible. We likewise ask witnesses to be understanding if and when the chair asks that a witness conclude a response.

Witnesses should please turn on their microphones, and speak directly into the microphones when giving your testimony, and to answer any questions. With that, we can move onto agency introductions. We are pleased to have international trade and economic experts from a range of U.S. Government departments and agencies here today.

We are going to be switching agencies out throughout the day. For this panel we have two agency representatives. Would you please introduce yourselves, starting with HHS?

MS. MAPATANO: Good morning, my name is Dawn Mapatano from the Department of Health and Human Services.

MR. DI TROLIO: Good morning, Christopher Di Trolio for Department of Commerce.

MS. PASTER: Good morning, I'm Megan Paster from USTR.

MR. BUTLER: And my name is Philip Butler, I am, also, from USTR. And with that we will begin with Panel 8. Mr. Bolsonaro, you have the floor for five minutes.

MR. BOLSONARO: Mr. Chairman, distinguished members of the Commission, ladies and gentlemen, good morning everyone. My name is Flavio Bolsonaro, I'm a senator of the Federative Republic of Brazil, Leader of the Opposition, and a president pre-candidate for my country's October election. Last month, I met with President Trump, Vice President Vance and Secretary Rubio to urge the United States not to impose tariffs on Brazilian companies. Today I would like to share with this Commission the same arguments I presented to them and explain why that request serves the interests of both

Brazil and the United States.

The 2025 data show that these tariffs have not produced the results the United States intended. Instead, they have been politically exploited by Brazil's current administration. The very government these measures were meant to pressure has gained strength in the polls while Brazil's trade with China reached a record 171 billion dollars, more than double its 83 billion dollars in trade with the United States. China has absorbed Brazil exports that were displaced from the American market by these tariffs. In other words, every additional tariff strengthens the very government it is intended to pressure.

Because of the little time available today I will address only two issues. All six are discussed in detail in the written statement I have submitted to this Commission. The first is censorship. In the confidential orders directed at American digital platforms did not originate in Brazil's national congress.

They were issued by a justice of

Brazil's Federal Supreme Court, and by President Lula's administration based on executive decrees and judicial rulings rather than legislation duly enacted by Parliament. A 25 percent tariff penalizes the entire Brazilian people except the very authorities responsible for those decisions.

The second issue is corruption. Corruption is one of the greatest scourges facing the Brazilian people. There is no disagreement on that, but corruption has identifiable perpetrators. The four largest corruption scandals in Brazil's recent history, the Mensalao scheme, the case uncovered by Operation Car Wash, the fraud involving Brazil's National Social Security institute, the INSS, under which President Lula's own son is among those under investigation, and the Banco Master case all occurred under government led by the Workers Party, the political party currently in power. Brazil, then, experienced four years under President Bolsonaro without a single

proven corruption scandal. Corruption has become a defining feature of Brazil's political left. The Brazilian people should not be punished for it.

The third issue is Pix. Pix, Brazil's instant payment system was created during the Bolsonaro administration. Pix is not a problem to be fixed, it's a solution. It expanded financial inclusion by bringing millions of Brazilians, especially the poorest into the formal economy.

That progress, also, directly benefitted American companies, as the volume of transactions processed through payment cards issued by U.S. brands continued to grow alongside the widespread adoption of Pix, since those companies provide service that complements rather than competes with Brazil's instant payment system.

Brazil will hold presidential elections in October. Within just 90 days the country's political landscape will look entirely

different. Imposing tariffs now that would be difficult to reverse rewards those responsible for the actions in question while punishing those who have borne their consequence, would be the worst possible moment to act. I respectfully ask this Committee, do not impose tariffs on Brazil.

Preserve the success of Pix, cancel this action and let us negotiate. God bless you, god bless Brazil, and thank you very much.

MR. BUTLER: Thank you. Ambassador, the floor is yours.

MR. AZEVEDO: Members of the Committee, good morning, I am Roberto Azevedo, senior advisor to CNI, the Brazilian National Confederation of Industry, and as a former Director-General of the World Trade Organization, I have spent my career on the trade questions now before you, and I am grateful for the chance to return to this Committee at the remedies phase of this investigation.

When I last appeared before you, I explained that Brazil had not adopted acts, policies, practices that unjustifiably burden or restrict U.S. commerce. On the contrary, our two economies are quite complementary. CNI has since submitted detailed written comments in this phase and together the evidence in this record, and the progress achieved since the data on Brazil was collected does not support the remedies USTR has proposed. And let me begin there. The proposed action is a uniform 25 percent tariff on almost all goods from Brazil.

Section 301 requires that any action is proportionate to the practice found, it is feasible in light of the effect of the U.S. economy, and it is reasonably calculated to eliminate those preferences. A blanket tariff on nearly all Brazilian goods with some exceptions meets none of those requirements.

It sweeps in products with no connection to any practice under investigation and at a scale that is highly disproportionate

to any alleged impact. Just as important, Brazil has made demonstrable progress since the data USTR relied on was collected.

On deforestation, Amazon alerts fell 61.4 percent in May '26 compared to a year earlier. This was the largest reduction for that month since monitoring began. On intellectual property, patent payment pendency is now 2.9 years, comparable, therefore, to the United States, not the seven year asserted at initiation.

On anti-corruption, active sanctions against private entities rose from 68 in 2020 to 771 in 2024. On issue after issue engagement and Brazil's own enforcement are producing the outcomes that the United States seeks. Second, I urge USTR to avoid further disruption, and unnecessary harm, and to choose a negotiated path instead.

The premise of a rebalancing tariff is simply absent here. United States does not run a deficit with Brazil, it runs one of its

largest surpluses, 41.8 billion in goods and services in 2025, concentrated in high value sectors where American workers excel, such as machinery, aircraft, and chemicals.

It is precisely this high-value American trade, much of which depends on Brazilian imports that this 25 percent tariff would put at risk, falling on American manufacturers, farmers, and consumers who cannot re-source at comparable prices or volumes.

The two governments have already described their recent meetings as constructive. The responsible course is to resolve U.S. concerns through the established bilateral channels not to inflict lasting damage on a mutually beneficial relationship.

Third, let me identify where cooperation would generate real benefits and nowhere is the case stronger than in critical minerals and rare earths. Brazil is a top supplier of ten mineral commodities for which U.S. import reliance exceeds half of domestic

consumption.

And our governments already work through the joint working group to reduce shared dependence on China. Brazilian industry has invested 27.9 billion in America, with projects across 23 states. On ethanol and biofuels where our two countries account for 80 percent of the production.

We see room to work together in third markets and we would welcome deeper American participation in Brazil's infrastructure pipeline. Now, these are the kinds of gains that bilateral dialogue can deliver. We are the two largest democracies in this hemisphere, we should be building together, not raising barriers against each other.

CNI, therefore respectfully urge the USTR to decline the proposed tariffs, and to pursue the negotiated resolution the two governments are already advancing. Should USTR nonetheless proceed with the proposed tariffs, they should include a mechanism allowing

importers to request exclusions on a rolling basis.

So, thank you again, Committee, for the opportunity to testify, and I welcome your questions, if any.

MR. BUTLER: Thank you. Ms. Masselli, the floor is yours.

MS. SPERB MASSELLI: Good morning, my name is Leticia Sperb Masselli, I am director at Brazilian Footwear Industries Association. Abicalcados was founded in 1983, and brings together footwear companies of different sizes, segments, across several Brazilian states. Its member companies account for more than 75 percent of Brazil's footwear production.

The United States has historically been the leading destination for Brazilian footwear exports and accounts for a significant share of the sector's foreign sales. This trade flow benefits not only Brazilian exporters, but, also, U.S. importers, brands, retailers, and consumers, given the productive, and commercial

interdependence between the two countries, which makes Brazil a strategic supplier in a market that is structurally dependent on imports. Some Brazilian companies, also, utilize U.S. imports, such as leather, in the production of goods that are sold to the U.S. In 2025, the United States accounted for more than 40 percent of the total value of Brazil's leather and hides imports, including inputs used by the footwear industry.

Brazil plays a relevant and complimentary role in the U.S. footwear supply chain. The Brazilian footwear industry works in cooperation with U.S. importers, brands, and retailers in the development of products and collections for the U.S. market.

Especially in segments that require smaller scale, greater model variety, shorter lead time, particularly due to greater proximity ad greater responsiveness to demand. These are all relevant attributes for the efficient supply of the U.S. market. Brazil, also, represents a strategic alternative with meaningful productive

scale in the western hemisphere, supporting U.S. efforts to diversify sourcing and build a more resilient and geographically closer supply chain. Brazil is world's fifth-largest footwear producer and the largest producer of outside of Asia.

Although the United States imports footwear from multiple origins, supply remains heavily concentrated in Asia. In volume terms, China accounts for the largest share at 48 percent, followed by Vietnam with 28 percent, Indonesia, ten percent, and Cambodia, five percent. Although China's share declines in 2025, sourcing largely shifted to other Asian suppliers.

An additional tariff on Brazilian footwear would reduce the competitiveness of a western, formal, and reliable complementary source of supply. It would directly affect U.S. importers, brands, and especially small and medium sized retailers whose business models depend on more fragmented orders, greater

product variety, and shorter production and delivery cycles.

The U.S. footwear market is heavily dependent on imports, while domestic production is limited and concentrated in specific niches. The United States consumes more than 2 billion pairs of shoes per year and produces approximately 20 million pairs, the equivalent of roughly one percent of the domestic consumption. In addition to the sector's structural constraints, recent public statements corroborate the perception that no significant reshoring of footwear production to the United States is expected.

For these reasons, an additional tariff on Brazilian footwear would not help address the acts under investigation. On the contrary, it would tend to increase costs, reduce supply diversity, and reinforce the concentration of U.S. sourcing in already dominant origins.

And would run counter to U.S. interests in supply chain diversification, resilience, and

security. We appreciate the opportunity to present our views, and remain at the Committee's disposal to provide any additional information that may be required. Thank you.

MR. BUTLER: Thank you. Mr. Priest.

MR. PRIEST: Good morning. On behalf of the Footwear Distributors and Retailers of America, thank you for the opportunity to testify at this hearing. FDRA is the footwear industry's trade and business association representing more than 500 footwear companies and brands across the U.S.

This includes the majority of U.S. footwear manufacturers, and over 98 percent of the industry. FDRA has served the footwear industry for more than 80 years. Our members include a broad and diverse cross section of the companies that make and sell shoes, from small, family owned businesses, to global brands that reach consumers around the world.

International trade supports hundreds of thousands of footwear jobs and communities

across the United States, good paying jobs in design, innovation, materials, sourcing, compliance, logistics, warehousing, marketing, and retail. Added tariffs puts these jobs at risk.

FDRA understands the need to ensure international trade rules are fair, and that our trade agreements benefit the American people. We, also, support improving intellectual property protections in Brazil, and addressing tariff barriers. However, we believe putting new tariffs on U.S. companies that source in Brazil is the wrong approach for addressing these issues.

Imposing tariffs on footwear harms American consumers. The U.S. Government already places high tariffs on footwear before any new tariffs are added. Without accounting for the new tariffs that have been added over the past year, consumers goods have an average tariff rate of two percent, but footwear has an average tariff rate of 12 percent.

The tariff rates are much higher for children's shoes. Kid's shoes often reach rates of 20 percent, 48 percent, and even higher before any new tariffs are added. Increasing these tariffs burden through new added 301 tariffs will result in higher costs for hardworking American families at a time when they're already facing economic uncertainty.

In fact retail footwear prices have climbed 5.2 percent over the past year outpacing overall inflation which came at about 4.2 percent in May. Men's footwear prices jumped 5.4 percent, the largest increase in 54 months, while women's footwear prices rose 6.2 percent, the largest increase in 45 months.

China's footwear prices increased 2.3 percent in that same time. As duty rates on footwear imports average 25.7 percent at this point, the impact is disproportionately higher compared to other imports. And tariffs as a remedy could have the unintended consequence of limiting footwear sourcing in the Western

Hemisphere, which I know is a priority for Ambassador Greer.

Brazil has become an increasingly important sourcing country for U.S. companies delivering footwear to American consumers. It has grown to become the second largest Western Hemisphere supplier of footwear to the U.S. market, providing almost 11 million pairs a year for U.S. consumers.

Brazil is one of the few nations with the capacity, infrastructure, and expertise to provide footwear for the U.S. market at scale and at cost demanded by American consumers. Brazil provides a key opportunity for companies to manufacture products close to U.S. consumers, and significantly reduce lead times.

Applying 25 percent tariffs on Brazilian made footwear in addition to the already high MFN rates and the new 12 and a half percent 301 tariffs will drive footwear sourcing away from Brazil, and out of the Western Hemisphere. And lastly, the proposed tariff

remedy does not alleviate burdens on U.S. footwear commerce.

The purpose of 301 remedies is to address a foreign country's acts, policies, and practices when those acts, policies, and practices burden or restrict U.S. commerce. Less than one percent of footwear is made in the U.S., and even less is exported to Brazil each year. Because there is so little U.S. footwear trade into Brazil, a tariff remedy will not ease burdens on U.S. commerce when it comes to footwear.

So, as you continue to hone your strategy to deal with trade issues in Brazil, we ask that you keep the American footwear consumer in mind. Our members have incalculable real world expertise in global trade, and the movement of goods in Brazil.

They know firsthand the impact added tariffs and cost have on pricing for consumers, and so as you work to address important trade issues between the U.S. and brazil, we encourage

you to strengthen the strong, and mutual beneficial trading relationship between our two countries. Thank you for the opportunity to testify, and I look forward to your questions.

MR. BUTLER: Thank you. Mr. Grueterich.

MR. GRUETERICH: Thank you for the opportunity to testify on this Commission. Bernardo 1946 is my company, we produce shoes exclusively in Brazil. Bernardo 1946 is a heritage American footwear brand, it was founded in Texas in 1946, and it has been a mainstay of the women in America looking for fashionable sandal footwear.

While we support the U.S. Government's efforts to address fair trade practices, imposing sweeping tariffs on footwear produced in Brazil will not resolve the underlying trade and labor concerns cited by the USTR. Instead, it will severely damage American businesses, penalize U.S. workers, and force American consumers to pay significantly higher prices for

every day goods.

Bernardo 1946 relies on specialized family run manufacturing partners in Brazil since 1946. These factories possess generations of skilled, artisanal leather craftsmanship that simply cannot be replicated or resourced overnight in the U.S. or even other nations.

A combined 47.5 percent tariff, as tariffs are additive, from ten, what we used to pay, to another ten percent base tariff and then a 27.5 proposed tariff under 301 tariffs would drastically inflate our cost of goods sold, cutting directly into the operational margins required to sustain our U.S. based headquarters, logistics, and supply chain management.

These negative impacts do not stop at the factory line. They resonate throughout the domestic economy because our inventory would be subjective to these high price markups for tariffs that have to be paid at the moment the shoes arrive on American soil, well before they have been sold. The sales volume and retail

distribution are projected to decline severely.

This reduction in retail demand will ultimately lead to decreased hours, halted hiring, and potential job losses among our U.S. sales, marketing, and warehouse employees. We've had an example of this with the IEEPA tariffs just a few months ago. We had to reduce our purchases by 50 percent based on cash flow needs in order to pay for the tariffs.

That reduction was significant. We had to reduce our work force by 15 percent. In addition, we had to cut severely our outside services, including product development, marketing, as well as eliminate our international expansion plans, further eroding out business.

Tariffs are ultimately paid by the importer. Meaning the burden is either passed on directly to the American consumer or absorbed by an American company. At a time when household budgets are already stretched thin by inflationary pressures, adding punitive tariffs

to premium, handmade leather sandals and shoes will inflate retail prices. Consumers will either be priced out of heritage quality, forcing them into inferior, unsustainable fast fashion from Asia, or be forced to absorb these exorbitant markups.

It is simply a crippling tariff on American businesses, such as mine. There are more than just Bernardo 1946 companies sourcing from Brazil. It is a critical note that the United States consistently maintains a substantial trade surplus with Brazil, which we recently reached a multi-year high. The U.S. goods and services trade surplus with Brazil grew from of 29 billion in 2024, to 41 billion in 2025.

We strongly urge the USTR to carefully consider these broad unintended consequences. We respectfully request that footwear be exempted from the final Section 301 tariff list to protect American companies, safeguard U.S. jobs, and prevent further financial strain on

the American consumer.

Thank you for the opportunity to present our concerns, and for your commitment to protecting American commerce. I am open to any questions.

MR. BUTLER: Thank you. We will now turn to questions. The first question is for USTR.

MS. PASTER: Thank you, this question is for Mr. Bolsonaro. Could you please explain what actions other than tariffs would encourage Brazil to eliminate its acts, policies, and practices found to be active under this investigation?

MR. BOLSONARO: I'm an agent -- a political agent, so I can talk about the current policy in Brazil. One and all, is the only one in Brazil that wants the tariff is the current President, Lula. Unfortunately, he don't care about the companies, he don't care about the Brazilian -- the nation's interests. And I think that includes what you're discussing here,

the tariffs. They're not the correct choice to hit the goal you want.

If you want to talk to Brazilian government, that one way, this is not the correct way. Just to use the tariffs, it is not the correct way. The correct way is to have the individual, give the people tools they can be used as -- so, we have complementary economies, Brazil and the U.S. We hope -- we have the expected hope to -- the government can change from next year, from January of next year, everything can change. Brazil -- what I can tell you is, we have a big chance to have a president that is not anti-American as we have today.

That is what I can tell you. You could wait or you could suspend this decision thinking in respect of our history relationship between Brazil and U.S.

MS. PASTER: Thank you.

MR. BUTLER: Thank you. I would like to remind everyone that there is no recording in

here, thank you. The next question is for HHS.

MS. MAPATANO: My question is for Ambassador Azevedo, can you please elaborate on your argument that tariffs would fall on American manufacturers, farmers, commerce, consumers that can't obtain alternatives at comparable prices and volumes? And is it your position that alternative supplies are not available for every product subject to the proposed tariffs?

MR. AZEVEDO: Thank you very much for the question. Of course one of the reasons why we make that assertion is that the Brazilian and the U.S. economies, as far as trade is concerned, is very much concentrated on high-value items and those are exactly the type of items where the U.S. excels. And the two industries are very much connected, and integrated.

And you will see a number of equipment manufacturers in the U.S., or machinery manufacturers in the U.S., who use inputs coming

from Brazil, a lot of that trade is actually intra-firm, so it's companies buying from themselves, and one of the reasons why that is, is that they optimize supply, and skills, and capabilities in both, inside both countries at the end of the day.

About, this is a number that is not in my presentation, about 62 percent of Brazilian export to the U.S. are inputs, they are not the final product. They are not competing at the shelf. They are not competing in the stores. They are helping American companies to produce better and in a more competitive environment where they can compete with other imports that are coming from countries who are very, very competitive, like China, for example.

So, we're helping the U.S. competition actually in providing those types of inputs.

MS. MAPATANO: Thank you.

MR. BUTLER: The Department of Commerce?

MR. DI TROLIO: My question is for Ms. Sperb Masselli, Mr. Priest, and Mr. Grueterich.

In your testimonies you note that tariffs on footwear from Brazil would raise prices for consumers, are there alternative non-Brazilian sources for these products?

Please explain whether alternative suppliers that provide footwear at comparable prices or volumes.

MS. SPERB MASSELLI: Thank you for your question. Well, Brazil, as I said, is the largest footwear producer outside of Asia. Most probably, tariffs on Brazilian products, footwear, would increase your imports from Asia. So, Brazil presents itself as the country in the Western Hemisphere which can supply, strategically like I said, footwear to companies that are looking for more flexible orders and more fast deliveries.

When we are talking about footwear, we have new collections every, at least every six months. So, Brazil has a role here in the development of these collections. Hundreds of brands, more than 150 brands come to Brazil to

develop their collections, and they would have a few thousand pairs to test the market.

Once they are aware of what is desired, what is working, they would gain scale somewhere else. So, Brazil is a supplier that is ready for that, is ready for this kind of partnership, I would say. And, also, when we are talking about -- this is when you're talking about big, big brands.

When you are talking about smaller businesses, for instance independent retailers, they will work with big brands that will attract foot traffic to their stores, but the margins on those products are not healthy for their businesses. So, they import smaller quantities from Brazil for example, and they will have better margins, exclusive designs that are not easily found actually, are not found online.

They can even put their own design, their own brand. So, we do offer something very unique to the market.

MR. PRIEST: It's a good question in

the sense that we know that this process on Brazil is not happening in a vacuum. You all are seeking tariff actions across the globe. There's a hearing happening right now, concurrently across the hallway on a different tariff proposal.

And so, the challenge for us is that we are searching for alternatives, but until the dust settles on what the tariff rates would be across the board globally, a lot of our members are very hesitant, a lot of the industry is very hesitant to make commitments to make purchase orders, as Peter mentioned, because we don't know where the tariffs will land.

And that uncertainty drives a damping of economic activity. Our other challenge is that, look, we are in this moment where we are looking for sources, when I started this job in 2009, after leaving the Department of Commerce actually, 90 percent of our volume in the U.S. market was from China.

That number is now 48 percent, as

Leticia mentioned in her comments. That is a low from 1990. I was in the tenth grade the last time we saw this kind of reliance on China for our footwear. And so, it begs the question, where can we go?

Well, if we're going -- want to come back to the Western Hemisphere, and our own government has decided you know what, we are going to tax American companies more if they go to Brazil, and they're our ally, and they're a democracy, we kind of scratch our heads like what's the -- what are we doing here, right? What is the true purpose?

And as the president said in May of 2025 very topically, I don't want to make T shirts and shoes in the United States. And so, if that's what the president believes, if we whole heartedly think he does, we do ask the question, what would be the purpose of burdening American companies, as Peter indicated, with these high tariffs?

And so, until we know where the dust

settles, it's going to be very difficult to identify alternative opportunities to as a result of the tariffs.

MR. GRUETERICH: Yes, what one has to, also, understand, that footwear is a very specialized product. It's not like cutting clothing, in that it's cut, and stitched. These are three dimensional products. They require molds. They require machinery that is specialized, and they require very high skilled labor.

This cannot be found anymore in the United States, or there are some shoe companies in the United States that includes moccasins and so forth, but for fine women's footwear, there just simply is no infrastructure left in the United States, it has left decades, and decades, and decades ago.

To bring this back to the United States would be virtually impossible. And moving it to another country, for small companies like ours, of which there are many, footwear is a very

fragmented business here in the United States, it would take a huge investment to move tooling into another country.

And make sure that the shoes fit exactly the same way, that they are made the same way, that the materials are exactly the same, that the stitch is exactly the same of what the customer is used to. Fifty percent of our product remains the same over years, over years.

We have sandals like the Miami, which has been in our program for over 50 years and has been unchanged, made by the same manufacturer all these years. It is our number one product today, still. And we make, you know, a hundred, about a hundred new products four times a year. It is a huge lift, we can't do that in China.

We can't do it because they require much, much higher volumes, minimums, okay? In Brazil we are able to work within a framework that is sustainable. In Europe, the prices are

much higher. They produce a different product. It's a luxury product.

But for the consumer who needs to get into affordable footwear, affordable fashion footwear, Brazil is one of the few countries that can do that for smaller brands. If you want to have something special, you want to have something that looks different, then that is the place to go to.

It's not something we can easily replicate. I went to Portugal the other day to source there. You know, natural place, one of the least expensive places to make footwear in Europe. I, also, speak Portuguese, so some things are translatable, but it's not an option. So, we are kind of left in a -- how you say? Difficult situation.

We've been looking elsewhere. You know, we look to India. We look to Egypt, to Morocco, we haven't found a solution for our company. And I think that is true for many other companies that are American, that are

American brands, that make their footwear in Brazil. You will hear from one of the panelists next -- in the next panel, Dillard's, for example. Big company. They make a lot of footwear in Brazil.

So, we are not the only ones. It's a very, very tough situation, and like Matt said, we can't invest currently when we do not know where we end up. And how can I place purchase orders that are going to be delivered, you know, six or nine months out from now? This is how long it takes from the time we start developing the footwear until it is actually delivered, when we do not know what the tariffs are going to be.

It's crippling. So, we have to reduce our purchase orders because we don't know where it goes, and it has this very fast, tricking-down effect to our workers, and everybody who works with us. You know, all the outsourced companies like warehouses, accounting companies, marketing companies, and so on and so forth,

they are all affected by it.

But, you know, in the end, it affects our volume, and it actually affects, also, the taxes we pay. When we don't make money we're not paying taxes, so it's a tough -- it's a very, very tough situation for us, and it could be the ending for our company if we can't find a solution.

MR. DI TROLIO: Thank you.

MR. BUTLER: Thank you to this panel. Thank you for your testimony. We are going to take a few minutes break just to change out names and setup for the next panel. Thank you very much.

(Whereupon, the above-entitled matter went off the record at 11:22 a.m. and resumed at 11:31 a.m.)

MS. PASTER: Good morning, thank you everyone. We're going to proceed with the next panel. Before we begin I'd like to make a few reminders. First, again, as we have said before, please no photos or recording in the

room, the transcript will be published the hearing concludes, so you'll have access to the record then.

Panelists, you all have five minutes for testimony, we're keeping time on our end, and if you exceed the time limit we'll politely ask you to conclude and wrap up. As we begin I'd like to have our agency participants just reintroduce themselves, we have had a few shifts. And so, just take a couple minutes to have everyone say their names, and then we'll proceed, thanks.

MR. JARAND: Hi. I'm Michael Jarand, deputy director of the Office of International Trade and Investment Policy at the U.S. Department of the Treasury.

MR. REYNOLDS: Hi. I'm Tobias Reynolds. I work at the International Trade Administration at the Department of Commerce.

MR. HUBLER: Good morning. Tyler Hubler. I work for USDA's Foreign Agricultural Service.

MS. GHADIALI: Hello. I'm Aysha Ghadiali with the Forest Service at U.S. Department of Agriculture.

MR. HICKS: Good morning. Randal Hicks, Office of Trade and Labor Affairs, U.S. Department of Labor.

MS. MAPATANO: Good morning. My name is Dawn Mapatano with the Office of Global Affairs at the Department of Health and Human Services.

MS. PASTER: Thanks, everyone. Okay, we'll proceed with Panel 9. Mr. Ruggiero, you have the floor.

MR. RUGGIERO: Thank you and good morning. My name is Pete Ruggiero, and I serve as president and CEO of Crayola. For more than 120 years Crayola has helped parents and teachers raise creatively alive children. Today we remain deeply committed to that mission, as well as to American manufacturing.

Crayola proudly employs nearly 1,200 workers in Easton, Pennsylvania, where we

manufacture billions of crayons and hundreds of millions of markers each year. I am here today to respectfully request an exclusion from Section 301 tariffs for colored pencils classified under HTSUS 9609.10.

Crayola is not an importer looking to offshore production, we are a U.S. manufacturer that produces 70 percent of our products domestically. We manufacture billions of crayons, and hundreds of millions of markers annually in Pennsylvania, as well as paints, compounds, kits, and even silly putty.

We have sustained this domestic footprint through decades of investment, and we continue to prioritize U.S. production wherever feasible. Our request today is consistent with that commitment. Colored pencils are our third largest product line behind crayons and markers, and they are a major product that we cannot manufacture in the U.S.

The reason is simple and unavoidable, colored pencils require tropical pine wood.

This wood only grows in abundance in South America in our supplier's 37 square mile custom grown tropical pine plantation. And finally, the time to replace the machinery and the forest to meet Crayola's significant demands is decades.

There is no viable domestic source of this raw material at the scale required and the quality required to meet U.S. demand for our colored pencils. One might ask why not import the wood, and manufacture the pencils in the U.S.? We have explored this option extensively, but it is not technically feasible.

Tropical pine is highly sensitive to environmental changes, during long distance transport the wood is prone to shipping damage and warping. This compromises product quality, and makes U.S. based manufacture impracticable. In short we cannot simply relocate this production to the U.S. even if we wanted to.

Because domestic production is not possible, Crayola has invested in a long term,

responsible solution, a 40 year partnership with a dedicated supplier in Brazil. A vertically integrated operation that grows the trees, processes the wood, and manufactures the pencils. High quality, consistent production at the scale required for U.S. consumers.

This is not a case of chasing low costs, it is a case of working within the physical realities of a supply chain. Applying 301 tariffs to colored pencils does not achieve the administration's objectives. Instead, it creates an unintended consequence. First of all, there is no reshoring benefit.

The raw material is unavailable at the scale required by Crayola's business, and production cannot move to the U.S. because the raw material is unavailable. Second, there is direct harm to U.S. manufacturing. Tariff costs divert resources away from our Pennsylvania operations.

Thirdly, higher costs for American families and classrooms, because colored pencils

are essential low cost educational supplies, particularly at this time of year as moms and dads and teachers shop for back to school. And supply chain disruption risk, there is no alternative global capacity sufficient to meet Crayola's scale.

Tariffs are most effective when they incentivize production shifts, in this case that outcome is not possible. Historically, duty free access under Generalized System of Preferences, or GSP allowed us to balance global sourcing with domestic investment. Since GSP lapsed in December of 2020, we have incurred millions of unexpected tariffs.

And despite these costs, we have worked with our supplier in our own operation to avoid passing price increases to customers, and maintain our investment in U.S. manufacturing. However, additional tariffs will force difficult decisions, potentially including price increases for families and schools.

We believe this is the exact type of

case where an exclusion is appropriate. The product relies on inputs not available in the U.S. Tariffs do not create domestic production incentives, and in fact the tariffs undermine existing U.S. jobs due to tariff-related restrictions on U.S. capital investment and brand investment.

This approach is consistent with prior policy recognizing that certain inputs, such as tropical wood, require tailored treatment. In conclusion, Crayola stands by and ready to invest, grow, and manufacture in the U.S. wherever it is feasible to do so. But for colored pencils, the constraints are real and unavoidable.

We respectfully urge the Office of the United States Trade Representative to grant an exclusion for HTSUS 9609.10. Continue supporting American manufacturing, keep essential school supplies affordable, and maintain a responsible, sustainable global supply chain. Thank you for your time and

consideration, and I look forward to answering your questions.

MS. PASTER: Thank you. Mr. Gold, you have the floor.

MR. GOLD: Good morning, thank you for the opportunity to appear today. My name is Jonathan Gold, and I'm the Vice President for Supply Chain and Customs Policy for the National Retail Federation. NRF is the voice of the nation's retail industry, which is the largest private sector employer in the United States.

Retail contributes $5.3 trillion in annual GDP, and supports 1 in 4 U.S. jobs, or 55 million working Americans. We urge USTR to narrow any action taken in this investigation, and exclude consumer products imported from Brazil from the proposed 25 percent duties.

If tariffs are imposed, they should be limited in size, scope, and duration, accompanied by a transparent exclusions process, and structured to avoid unnecessary harm to American families, retailers, workers, and

supply chains. Our principal concern is straightforward.

Tariffs on consumer goods would raise costs for American households without effectively addressing the Brazilian policies identified in this investigation. Families are already facing higher prices from a combination of tariffs, fuel costs, and rising inflation pressures. Adding a 25 percent duty on consumer products would compound those pressures on everyday consumer goods.

Data from the Trade Partnership Worldwide shows that consumer goods imports from Brazil already faced an estimated $300 million in additional tariffs from April 2025 to April 2026, as a result of other trade action. Key categories include footwear, furniture, eyewear, adhesive medical tape, colored pencils, and hair care products.

None of these products are included in the current annex of proposed exemptions. The proposed tariffs would punish retailers that

have done exactly what the administration has encouraged them to do: diversify away from China, and build more resilient supply chains.

One NRF member moved footwear production from China to Brazil as a result of the first administration's actions, and called for companies to reduce their reliance on China. That company has faced steep Brazil-specific tariff increases, and now faces the prospect of another 25 percent duty under this proposed action.

Brazil is an important part of a broader Western Hemisphere sourcing strategy. For footwear in particular, China and Vietnam remain the only true large scale sources for the U.S. market. Brazil offers retailers another option that can shorten lead times, reduce concentration risk, and support supply chain resilience.

Penalizing that sourcing shift would leave retailers with fewer alternatives, not more. We also recognize that USTR has

identified concerns involving Brazil's electronic payments ecosystem. Brazil's Pix system has actually shown how alternative payment systems can expand choice, lower transaction costs, and introduce competition in markets where retailers and small businesses often face high fees from dominant card networks.

Any concerns about Brazil's regulatory approach should be handled in a way that preserves competition and technology neutrality, while not using broad tariffs on unrelated goods. If the administration proceeds with tariffs, NRF encourages USTR to adopt several safeguards. First, the tariff rate and product coverage should reflect the actual burden or restriction imposed by Brazilian practices at issue.

As Section 301 requires, the USTR should not impose duties that are broader or higher than necessary to achieve the statutory objective. Second, USTR should broaden the

exemptions beyond the limited products listed in the annex. Consumer goods should be excluded, and tariff relief already granted under Section 122 should also be preserved.

Third, USTR should establish a clear, transparent, and workable exclusions process. Retailers need a timely way to seek relief for products that lack commercially viable alternative sourcing, or that are especially sensitive to price increases. The process should be broad enough to avoid unnecessary disruption to seasonal orders, inventory planning, and existing supplier relationships.

Finally, any tariffs should be limited in duration, subject to periodic review, and include automatic sunset provisions. They should not apply to goods already on order. Any tariff escalation should be tied to objective benchmarks. If Brazil makes measurable progress, USTR should reassess the action, and remove or modify tariffs as appropriate.

NRF urges USTR to reconsider tariffs as

the primary solution in this investigation. Tariffs may shift sourcing decisions, but they are unlikely to create new U.S. production or resolve services-related policy disputes. They will however raise costs for consumers, reduce sourcing options for retailers, and weaken efforts to build more diversified supply chains.

A better approach is direct negotiation, sector-specific engagement, and enforcement tools calibrated to the practices at issue. We stand ready to work with USTR to address legitimate trade concerns, while avoiding unnecessary harm to American families and the retailers that serve them. Thank you.

MS. PASTER: Thank you, Mr. Gold. Next we have Ms. Gray, please proceed.

MS. GRAY: Good morning, my name is Lauren Gray, and I'm the Corporate Merchandise Manager for the Exclusive Brand Footwear program at Dillard's. I've worked with Dillard's for more than 18 years, and have been directly involved with product development and sourcing

within our Exclusive Brand Footwear program for over 16 years.

Dillard's is one of the nation's largest fashion, cosmetic, shoes, and home furnishing retailers. Headquartered in Little Rock, Arkansas, we operate 271 upscale department stores and clearance centers across nearly 30 states, heavy presence being in the south and southwest.

Dillard's employs over 29,000 associates, most of whom work in our retail stores. And while Dillard's carries top national brands, we really set ourselves apart by offering a robust portfolio of our own exclusive private label brands.

In fact, Dillard's has the largest private label footwear program in the United States, and we have seen continuous evolution and growth since the program's inception in 2001. We have a breadth of experience working with production and sourcing partners, and we have found that for premium, affordable leather

footwear, there is simply no better option than Brazil.

We have a deep desire to continue our relationships with our trusted Brazilian partners, but we are concerned that new Section 301 tariffs may eliminate Brazil's export footwear industry, force greater reliance on Asian manufacturers, and ultimately worsen consumer affordability concerns.

Brazilian leather footwear manufacturing is defined by a world-leading leather industry that provides access to high quality raw materials, a distinctly high level of craftsmanship, and artisanal details made possible by handmade construction techniques.

Furthermore, our Brazilian partners often maintain relatively quick production times for both new styles and reorders, which is a remarkable achievement given the highly complex nature of footwear manufacturing. When combined with Brazil's proximity to the U.S., these factors allow Dillard's to efficiently fulfill

the needs of the American consumer, particularly when we compare production and shipping times from Asia.

However, it must be noted that Brazilian shoe manufacturing has shrunk over the last two decades, largely due to the emergence of Asian production. Without accounting for tariffs, producing footwear in Brazil is already about 30 percent more expensive than comparable Asian manufacturing.

When 50 percent IEEPA tariffs were in place, several of our suppliers were forced to make substantial production and employment cutbacks to remain in business, and we are very concerned that the new Section 301 tariffs may lead to irreparable harm for the viability of the Brazilian leather footwear production industry.

Since President Trump's first term, Dillard's has worked diligently to reduce our reliance on Asia. We have remained dedicated to diversifying our global supply chains, including

in the Western Hemisphere and the U.S. whenever possible. We specifically focus on curating partnerships with top tier global factories, and we subject our suppliers to extensive auditing.

For leather footwear, only Brazilian suppliers can effectively compete with Asia while adhering to these strict standards. Import data from the USITC illustrates that for the specific leather footwear HTSUS codes utilized by Dillard's, Brazil is by far the largest supplier in the Western Hemisphere, outpacing Mexico and the Dominican Republic by millions of units, though the overall market is generally dominated by Asian economies.

Consequently, without Brazilian manufacturing in this category, prestigious U.S. luxury and casual brands will simply be forced to turn back to Asia, and we do not think it is in the American economic interest to be entirely reliant on Asian leather footwear production.

As noted, additional Section 301 tariffs on Brazilian leather footwear would

result in irreversible consequences for our manufacturing partners in Brazil. However, this would also harm American families at a time when millions of U.S. consumers have expressed concerns about affordability. Dillard's has built our private label shoe program based on innovation, quality, and value.

We will not be able to continue with these core tenets if additional Section 301 tariffs are applied to Brazilian leather footwear, as we will be forced to modify our products or raise retails to an unsustainable level.

In conclusion, we believe that additional Section 301 tariffs on Brazilian leather footwear will create lasting uncertainty for the future of Dillard's premium leather footwear sourcing in the Western Hemisphere, and lead to higher retail prices for American consumers.

As such, Dillard's respectfully recommends that the USTR omit Brazilian-made

leather footwear from any additional Section 301 tariffs imposed pursuant to this investigation. Thank you for the opportunity to testify today, and we welcome any questions you may have.

MS. PASTER: Thank you, Ms. Gray. Next on my list we have Ambassador Azevedo, although I see the ambassador and Mr. Tarpley have switched seats. If it's okay, we'll proceed with Ambassador Azevedo. Perfect.

MR. AZEVEDO: I really appreciate it, thank you. And again, distinguished members of the Committee, good morning. So again, I am Roberto Azevedo, I'm president of FIESP's Council on Foreign Trade. And on behalf of the Federation I would like to thank you again for the opportunity to appear before you.

The Federation of Industries of the State of Sao Paulo is the largest industrial organization in Brazil. It assembles more than 130,000 companies responsible for over two-thirds of Brazilian industrial GDP. We respectfully submit that the factual record

developed during this investigation does not support the conclusion that Brazil's policies justify additional tariffs.

So, allow me to briefly address just three issues. The first one is tariffs. Brazil is one of the very few major economies with which the U.S. enjoys a manufacturing trade surplus. And that is difficult, of course, to reconcile with the proposition that Brazil systematically discriminates against American exports.

One reason is quite straightforward: the average tariffs effectively applied to imports from the United States, 2.6 percent, is far below Brazil's average bound tariff of approximately 12.5 percent.

The USTR suggests that this reflects non-automatic import mechanisms, but respectfully, that characterization is incomplete. These regimes, including the ex-tariff regime and drawback, they have existed for decades. They are established by law, and

they follow very transparent, predictable, and widely accessible procedures.

American companies have long been among their principal beneficiaries, receiving duty-free treatment for capital goods and intermediate inputs widely used by Brazilian industry. The Mercosur-India Agreement illustrates this limited scope of these preferential tariffs. It covers only about 20 percent of Brazil's imports from India, and only 13 tariff lines receive full duty-free treatment.

So let me now address environmental protection, which is the second issue. Illegal deforestation is a crime in Brazil. It is not an industrial policy, and Brazilian companies derive no benefit from it, quite the opposite.

It damages the international reputation of Brazilian industry and threatens one of the country's greatest economic assets. Brazil faces enormous enforcement challenges in protecting an area comparable to half the

continental U.S. and bordered by seven countries. Nevertheless, Brazil has made measurable progress.

Deforestation alerts in the Amazon fell by 37.5 percent between August '25 and May '26, and that's the lowest level in the historical series for that period. These are not just encouraging trends, they confirm that the current policies are producing tangible results.

So, the third issue is intellectual property. Brazil's National Institute of Industrial Property reduced its backlog from approximately 147,000 pending applications to just over a thousand. Enforcement against piracy and counterfeiting has been significantly strengthened. The Praedo Operation effectively dismantled a criminal organization engaged in illegal IPTV distribution.

Another example was the temporary shutdown of Shopping 25 de Marco, a commercial center comprising approximately 2,000 stores, and that was done of course to facilitate the

seizure of counterfeit products. No country has a perfect intellectual property system, but Brazil's trajectory is clear, one of continuous improvement.

Members of the Committee, the question before this investigation is not simply whether challenges remain, of course they do. Every country, without exception, is permanently looking to improve its institutions. The question is whether the factual record justifies measures that risk weakening a bilateral relationship that has delivered substantial benefits to both countries.

Additional tariffs would not only affect Brazilian exporters, they would also increase costs for American manufacturers that rely on Brazilian products and inputs, and we heard that today, this morning several times. Brazil should be viewed not as part of the problem, but as part of the solution for expanding American exports, strengthening resilient supply chains, and promoting long-term

economic growth across the Americas.

So we respectfully encourage USTR to continue pursuing dialogue and cooperation with Brazil's private sector and government, rather than imposing additional trade barriers. And FIESP of course stands ready to contribute to that effort. Thank you again very much.

MS. PASTER: Thank you, Ambassador. Mr. Tarpley, you have the floor.

MR. TARPLEY: Good morning, I appreciate the opportunity to testify here today. I am Tim Tarpley, President of Energy Workforce and Technology Council. Energy Workforce and Technology Council, also known as EWTC, is the national trade association for the global energy, technology, and services sector representing more than 625,000 U.S. jobs in the technology-driven energy value chain.

The U.S. energy services sector is strongly committed to U.S. energy dominance and maximizing the U.S. manufacturing base, and many of our member companies have made significant

efforts to reshore significant elements of their supply chain to the United States in recent years.

EWTC and its member companies remain committed to supporting domestic energy production, strengthening supply chains, and reshoring key energy manufacturing. However, we are concerned about any potential remedies that could unintentionally penalize U.S. energy service manufacturers for supply gaps that cannot readily yet be filled domestically.

Brazil is home to very specific energy manufacturing, especially in the offshore space, which does not yet currently exist in sufficient capacity anywhere else in the world. Our companies are on the front lines of achieving the President's stated goal of adding 3 million barrels per day of U.S. production.

These companies are also investing in broader national objectives of reshoring critical manufacturing and strengthening domestic supply chains. However, the

uncertainty surrounding proposed tariffs, particularly the new tariffs on key industrial inputs, threatens to undermine these goals, and we fear they could have unintended consequences.

Several HTS categories produced in Brazil could face additional duties with this investigation, including steel pipe, butt-welding pipe fittings, alloy steel products, tubular products, electrical conductors, and power transformers. Domestic alternatives for certain specialized grades and dimensions remain limited, and abrupt tariff increases could raise costs and extend lead times for U.S. energy projects without materially increasing near-term domestic production capacity.

Brazil has developed unique manufacturing capabilities that are integral to offshore oil and natural gas development. For example, large-diameter, heavy-wall drilling casing engineered to withstand the extreme pressures and corrosive conditions of deepwater operations are produced in Brazil by

manufacturers with decades of specialized experience and production capacity.

Likewise, subsea production trees, manifolds, and other subsea production systems used to control wells on the ocean floor are manufactured in Brazil primarily, and remain essential components of offshore projects in the Gulf of America. Given the importance of subsea trees to the U.S. Gulf of America energy production, we would like to focus specifically on this product briefly.

Currently subsea trees are not produced in sufficient quantities in the United States to support all of the GOA production. This specialized construction would be difficult if not impossible to reshore in the time period necessary to avoid significant cost increases for Gulf of America offshore production.

Subsea trees are critical safety and production control systems required for offshore oil and gas operations, and they are essential to U.S. energy security. These systems are

highly capital-intensive, involving complex engineering, long lead times, and significant upfront investments, and are sourced from a limited number of globally qualified suppliers.

New tariffs could delay or cancel projects, reduce domestic energy production, and ultimately contribute to higher fuel and natural gas prices across the U.S. economy. Tariffs on energy infrastructure are known to increase costs and delay investment, with broader impacts on energy affordability and industrial competitiveness.

Importantly, subsea trees and related equipment have no nexus to the practices identified in this investigation, and therefore should not be connected to the results. As USTR evaluates potential actions under Section 301, EWTC respectfully recommends that any remedies account for the need for certain critical energy components to maintain U.S. energy dominance, and ensure that any remedies as part of this investigation with Brazil account for this need.

I appreciate the opportunity to provide input today, and look forward to questions, thank you.

MS. PASTER: Thank you, Mr. Tarpley. With that, we will proceed with questions. The first question will come from Commerce.

MR. REYNOLDS: This one is for Ambassador Azevedo. As the U.S. Trade Representative has already determined that Brazil's acts, policies, and practices are actionable, and action is appropriate, what actions other than tariffs would encourage Brazil to eliminate its acts, policies, and practices?

MR. AZEVEDO: Thank you very much for the question. Tariffs I don't think usually help dialogue. And I will be very, very blunt about that. Companies who are subject to tariffs, they don't linger on considering for very long how to change that, they often just go for something else.

They go for another option, they go for

another alternative, it may be more expensive, it may be less efficient, but that's usually the course of action, they just try to figure out a way forward. We think the best way to improve those practices is to continue dialogue, and to find ways forward.

One thing that has not been done enough in my view, is getting the two private sectors to sit down together and find a way forward. We have seen a number of situations and we heard that yesterday, we're hearing this today again, where the private sector is being hurt on both sides.

The best thing to do, I think would be to narrow down each one of those practices that the USTR and the U.S. believe are being harmful to American interests, get the private sector together, let's see what we can do, let's get them to think outside the box, and let them propose things from both governments.

Honestly I don't think that the conversations between the two governments from

the reports we've been getting, are going very far. So, we need something different, we need a different dynamic to make that happen. And I strongly suggest that the private sector should have a seat at the table, and should be helping governments to figure things out case by case, issue by issue.

Anyway, that is the way I see that. I don't think that the tariffs are going to move the needle in terms of making progress, honestly.

MR. REYNOLDS: Thank you.

MS. PASTER: Thank you. The next question is for Mr. Tarpley. Could you please elaborate on the availability of the energy infrastructure component products that you talked about in your testimony that are covered by the action, specifically the availability from other domestic and third country sources?

MR. TARPLEY: Sure, thank you for that question. So, there's really kind of two aspects of concern. One is for components,

energy components that are built in Brazil and maybe imported into the United States that are -- then become part of larger energy components that are actually built in the United States, there is that question.

And then there is the example of subsea trees which I mentioned, which are critical to offshore energy development. The capacity to build those really exists primarily in Brazil, there is some manufacturing in other places around the world, including the United States, but not at the capacity that would be necessary to fulfill all of that.

In order to move that, it would be very expensive and time consuming, we're talking years, maybe decades, and very expensive. The other thing I would just remind everyone is this equipment is primarily designed in the United States, it is U.S. technology, it is built by U.S. companies in Brazil, and Brazil is a huge market for offshore subsea trees.

So, there is a logistical reason why

its final assembly occurs there.

MS. PASTER: Thank you. The next question is going to be from Treasury.

MR. JARAND: Thank you. So, this question is for Mr. Ruggiero, Mr. Gold, and Ms. Gray. So, as stated in the Federal Register notice, the proposed exemptions include certain raw materials and products that could cause economy-wide disruptions if subject to the proposed tariffs, and certain products that cannot be grown or produced in sufficient quantities in the United States, or obtained from other sources.

If not available domestically, consumer goods are generally available from third countries, although possibly at higher prices. Do you agree, and if not, why?

MR. RUGGIERO: Thank you for the question. I do not agree with that assertion, and principally we're talking about a scale of operation that we have built over a 37 year relationship with the supplier. It's an

integrated renewable forest that doesn't exist in the world.

Having toured the plant again last October, the machinery investment is so substantial it would take years for a supplier to build that investment. And that investment would be duplicative with the existing capacity that there is at the supplier.

And finally, in our business, particularly this time of year with responding to unforecasted demand, close to market responsiveness is critical. Having the production capability on the east coast of Brazil with a five day sailing time is a critical competitive advantage for the Crayola business.

And shifting production, that would take 20 years to build a forest, and 10 years, 8 years to build the capacity, would still not overcoming the six, seven week lead time for sailing to the United States.

MR. GOLD: I would agree with Pete, I

mean it really depends upon the consumer product as to what's available where. And again, if part of the goal of this administration is for folks to continue to diversify those supply chains away from China, you need to give them those opportunities. Brazil, obviously, for things like footwear and colored pencils, provides a great opportunity.

If we go ahead and start putting tariffs back on Brazil at the high rates, it's going to shift, it will shift back to Asia, and I don't think that's the goal of what this administration wants when looking at trade policy. So, I think for retailers it's incredibly important for them to have certainty.

And so looking at those supply chains, and looking at the different products that they are sourcing. You know, we talked about having a six to nine month lead time, it could be longer. If you've got to go and find a new source to go and make your product, you've got to go and make sure they are who they say they

are, they meet the quality, capacity, quantities you need.

They've got the working infrastructure, they meet product safety rules if it's, you know, a children's product, so you're talking years to move a supply chain. So, I think continuously forcing companies to shift their supply chains because of tariffs probably isn't the best strategy.

You know, as we're talking about affordability, that all goes into that cost as well. While many companies are going to eat the cost of the tariffs, we've seen the impact that's had with the latest tariffs we've had, some of those costs will get passed along to consumers. So, I think right now what we need to be looking for is stability and certainty within the supply chains, giving retailers the opportunity to create diversity and resiliency in their supply chains and not continuously force them to look elsewhere because of ongoing tariffs.

And you know, as we're looking at, for footwear specifically, China and Vietnam are the two dominant markets, we've got another investigation on Vietnam that could lead to additional tariffs on Vietnam. So again, where are retailers supposed to go?

MS. GRAY: I agree with those comments as well, footwear being as complex as it is to manufacture, being able to kind of uproot a factory and move it is not an overnight process, it again would take years to accomplish something like that. We have done due diligence throughout the last several years in trying to find different supply chains and places to produce footwear, Brazil is the best option for this type of ladies leather footwear.

So, while we have expanded outside of our traditional Asian resources, even a factory here in the U.S. in a very small capacity, Brazil is the best and most cost affordable option for premium leather footwear for men, women, and children at a retail that is

accessible for the consumer that we are looking to service, which is someone who is watching what they are spending, and making sure that, you know, every dollar counts.

So, in terms of value, quality, there is not really another option outside of Brazil at this point unless we go shift to Asia.

MR. JARAND: Thank you.

MS. PASTER: Thank you, everyone. Thanks to the panelists, we'll conclude, and then take a brief break before proceeding with Panel 10.

(Whereupon, the above-entitled matter went off the record at 12:07 p.m. and resumed at 12:16 p.m.)

MS. THOMPSON: May I have everyone's attention? Please be seated so we can begin the next panel.

MS. PASTER: All right, thank you. So, we'll proceed now with Panel 10. As a reminder, testimony is limited to five minutes, if you go over time we will try to politely remind you to

conclude. So, we will start again with Ambassador Azevedo.

MR. AZEVEDO: Well, thank you again, and I promise this is the last one, so I'll be out of your hair very quickly. Anyway, good morning again, Chair, and members of the Committee. Again, my name is Roberto Azevedo, I am pleased to appear today on behalf now of Companhia Siderurgica Nacional, CSN.

And we do appreciate the opportunity to participate in this proceeding, and would like to focus our remarks on a narrow, but important issue concerning tin mill products. At the outset we commend the Committee for expressly excluding from the proposed action articles already subject to Section 232 duties.

And that approach appropriately recognizes that cumulative application of Sections 232 and 301 remedies would impose unnecessary burdens on downstream U.S. industries while doing little to advance the objectives of this investigation.

And we respectfully urge the Committee to ensure that products that have been treated as outside the practical application of Section 232, including certain tin mill products, they are not inadvertently captured by the final Section 301 measure merely because of changes in the administration of the Section 232 program.

And this is particularly important because tin mill products are considered a unique segment of the steel market. Unlike many other steel products, tin mill products are not discretionary consumer goods; they are indispensable industrial inputs used to manufacture food cans, beverage containers, pharmaceutical packaging, aerosol cans, and specialized chemical containers.

And every additional restriction imposed on these products inevitably affects downstream manufacturers and ultimately American consumers.

The information now before the committee clearly shows the United States is

structurally dependent on imports of tin mill products. Domestic production currently satisfies only a small fraction of domestic demand, while imports account for roughly three quarters of U.S. consumption.

Over the past several years, U.S. producers have made strategic decisions to consolidate or discontinue tin mill production, while redirecting investment towards other higher value-added steel product lines. And as a result domestic tin mill capacity has continued to contract, making imported supply indispensable to the food packaging industry and other critical manufacturing sectors.

Now, this is therefore not a case of import displacement; it is a case of structural import dependence. Indeed, the same evidence suggests that continued Section 232 tariffs on tin mill products are unlikely to achieve the objectives of the program. Given the structural gap between domestic production and demand, those tariffs cannot realistically restore

domestic supply.

Brazilian exports represent approximately one percent of U.S. tin mill imports, making Brazil a small, supplementary supplier, rather than a dominant market participant. Moreover, CSN is the only Brazilian producer of tin mill products. Its potential exports are modest in volume, complementary to U.S. supply, and incapable of causing material injury to domestic producers. On the contrary, they contribute to supply chain resilience at a time when domestic capacity remains constrained.

Now, the issues under examination in this proceeding concern matters such as digital trade, electronic payment services, intellectual property, anti-corruption enforcement, ethanol, market access, and illegal deforestation. Restricting imports of till mill products will simply impose additional costs on downstream American industries and consumers. It would not advance any of those objectives of the Section

301 investigation.

Finally, CSN is not an opportunistic exporter seeking temporary market access. The company has maintained commercial ties to the United States for decades, and previously owned and operated manufacturing facilities in the country for nearly 20 years. That experience reflects CSN's long-term commitment to the U.S. market. Predictable and steady market access provides the certainty that supports long-term commercial engagement and future investment decisions by companies such as CSN.

That's it for today. Thank you very much. And I look forward to your questions.

MS. PASTER: Thank you, Ambassador. Next, Ms. Coluch, you have the floor.

MS. COLUCH: Thank you. As a consultant for the Brazilian Ceramic Tile Manufacturers Association, ANFACER, I appreciate the opportunity to testify. ANFACER represents the Brazilian ceramic tile manufacturing industry, and these comments pertain to the

ceramic tile products classified under HTSUS heading 6907, including ceramic flags and paving, hearth or wall tiles, ceramic mosaic cubes, and finishing ceramics.

ANFACER comments address the question of whether ceramic tile products from Brazil should be subject to the proposed remedy. For the reasons set forth below, ANFACER will testify that ceramic tile products constitute an appropriate candidate for a product-specific exclusion from any final tariff action adopted in this investigation.

Ceramic tiles are essential inputs in U.S. residential construction, multifamily housing projects, commercial development, and remodeling activities. U.S. tile production cannot fully satisfy its domestic demand; thus, restricting supply from Brazil would likely result in higher prices and reduced product availability throughout the construction supply chain. The impact of higher tariffs on Brazilian ceramic tiles would be felt primarily

by U.S. builders, contractors, distributors, retailers, developers, and homeowners.

The Tile Council of North America, TCNA, which represents U.S. tile producers, acknowledges that imports accounted for 72 percent of U.S. ceramic tile consumption in 2025, and that there is insufficient U.S. supply. As previously stated by TCNA's executive director, the uncertainty with tariffs is a disaster for the construction industry.

We also note that the Brazilian ceramic tiles are already subject to the most-favored nation tariffs, MFN, that are more than five times the U.S. average. The most-favored nation tariffs on products of heading 6907 are either 8.5 or 10 percent. As the tariffs on those products are already high, there is no need for additional tariffs. At the very least, additional tariffs should consider the tariffs that are already in place, and create different levels of tariffs for products with an already high most-favored nation tariff rate, such as

ceramics of heading 6907.

Regarding the USTR's preliminary determination allegations of preferential tariff treatment afforded to Mexico and India, ANFACER will testify that Brazilian imports of ceramic tiles originating in the United States, Mexico, and India are all subject to the same effective Brazilian import tariff of 12.6 percent, which is similar to the tariff the U.S. already imposes on Brazilian ceramic products.

In short, excluding Brazilian ceramic tile would not undermine the effectiveness or integrity of any final action. Rather, it would ensure that any remedy ultimately adopted remains appropriately tailored to the conduct at issue, avoids unnecessary disruption of U.S. economic interests, and advances the objectives of Section 301 in a targeted and proportionate manner. I look forward to answering any questions.

MS. PASTER: Thank you. Now Mr. Jose Machado, you have the floor.

MR. MACHADO: Good morning, and thank you for the opportunity to testify today. My name is Wilton Machado, and I am the president and chief executive Brasil Minerios. Brasil Minerios is the largest producer of vermiculite in Latin America, operating major mining and processing facilities in the State of Goias, Brazil.

We supply high-quality, asbestos-free vermiculite to global markets, including the United States, for use in construction, agriculture, and industrial applications. We are also a member of the Vermiculite Association, an international trade association founded in 1948, based in the U.S., with 11 U.S. companies as members.

I'm here today to introduce you to vermiculite and respectfully request that USTR exclude vermiculite, HTS subheading 2530.1000, from the proposed tariffs measure.

This is vermiculite, a mineral, an essential mineral. It's irreplaceable, and it's

unique. And I will explain to you why. Vermiculite is a critical mineral that supports key sectors of the U.S. economy and plays an essential role in infrastructure, manufacturing, and agriculture. It is widely used in fireproofing materials that protect structural steel in skyscrapers, hospitals, schools, and other critical infrastructure.

It's also used in construction in gypsum wallboards to maintain structural integrity in case of fire and friction. It's used to create brake pads, in horticulture to improve soil mixes in green houses to produce foods. The United States does not have sufficient domestic production to meet its needs.

According to the U.S. Geological Service, U.S. has just two operating mines. Domestic supply is limited both in volume and quality, and existing production is largely restricted to super-fine grades that cannot be used for many core applications, such as fire

protection.

As a result, the United States can reach only about half of its domestic demand for vermiculite through domestic production. The remainder must be supplied from imports. And where it comes from, Brazil is a key supplier in this market, providing approximately half of U.S. vermiculite imports. The other half comes from South Africa, specifically from a Chinese state-owned mining company. This means that Brazilian vermiculite is not easily replaceable. It is essential to maintaining stable supply chains across multiple industries.

The imposition of tariffs on vermiculite has already begun to disrupt supply chains and risks creating shortages in the U.S. market. We have already experienced this last year, when the tariff was 50 percent. The Brazilian vermiculite market share in the U.S. dropped to zero, creating a Chinese monopoly. The consequence extends across the economy, affecting manufacturing, logistics, and food

production, as well as the resilience of critical infrastructure systems. Excluding vermiculite from the proposed tariff would support supply chain stability, protect essential industry, and ensure consistency with U.S. trade policy.

Vermiculite also merits consistent treatment within the tariff schedule. Other mineral substances under the same HTS subchapter, 2530, are already excepted, yet vermiculite remain subject to tariffs despite its similar characteristics and uses. As an example, I will quote here, 2530.20, kieserite, exempted; 2530.90, other mineral substances not elsewhere specified, exempted, except vermiculite.

For these reasons, Brasil Minerios respectfully urges U.S. Government and the USTR to exclude vermiculite under HTS subheading 2530.10 from any tariff which compromises economic efficiency, including any adopted in connection with Brazil's Section 301

investigation. Thank you for your time and consideration. I look forward to answering your questions.

MS. PASTER: Thank you, Mr. Machado. Mr. Baroni, you have the floor.

MR. BARONI: Thank you. Good morning. My name is Joao Baroni. I'm the CEO of Engemasa, a Brazilian industrial manufacturer with more than 50 years of experience producing critical high-temperature equipment for petrochemical plants and refineries.

I am here today to request that the USTR not impose tariffs on centrifugally-cast high-temperature alloy reformer tubes, classified under HTS 8419.90.30. These -- I have pictures here -- are heat-exchanger components that keep American refineries and chemical plants running. The same HTS tariff line is already exempt for goods associated with civil aircraft, and the exemption should be extended to the petrochemical industry, as well.

Engemasa manufactures pyrolysis

heaters, catalyst tubes, and other high-temperature components for the petrochemical and refining sectors, the core equipment where critical chemical reactions occur. This is not commodity equipment. These are precision-engineered components that operate inside furnaces under extreme thermal stress. Without them, ethylene crackers and refinery units cannot function. There are no substitutes.

U.S. producers cover only 20 to 25 percent of domestic demand, and none have announced plans to expand. Even if they started today, new capacity could not come online for years, given the specialized metallurgy and qualification cycles involved. The remaining 75 to 80 percent comes from imports. Engemasa is the only qualified supplier of comparable scale in the Western Hemisphere, holding qualifications with major licensors, including Technip Energies and Lummus Technology.

American petrochemical operators are already under pressure; margins have compressed

and costs have risen. In that environment, procurement teams need suppliers who deliver reliably, competitively, and on time. That is how Engemasa has grown its position in this market.

Let me give you a concrete example. When American plants face unplanned shutdowns, every day counts. Engemasa's standard lead time is five to six months, which compares to 12 to 18 months from European competitors. In emergencies, we move faster than anyone. When Air Liquide face an emergency at its California facility -- a company with nearly 19,000 U.S. workers -- Engemasa delivered the equipment in 10 days, against a second-best offer of eight weeks. That response saved the plant more than 30 days of downtime worth millions of dollars to their operation.

American producers cannot fill the gap. European alternatives are more expensive, slower, and already at capacity. So what happens is the proposed tariffs apply to our

reformer tubes? That leaves one alternative: China. Chinese suppliers operate with state backing, therefore embedding Chinese technology in U.S. critical infrastructure raises real security concerns. Redirecting procurement toward China to avoid a tariff on a trusted allied manufacturer undermines the very industries this proceeding is meant to protect. And even if alternatives existed, switching suppliers would not be practical: furnace licensors require multi-year qualification for any new source.

The stakes here extend well beyond Engemasa. The U.S. petrochemical sector supports more than half a million direct manufacturing jobs and is one of the America's top exporting industries. Petrochemicals are foundational inputs for plastics, pharmaceuticals, fertilizers, and defense supply chains. When you raise the cost of essential equipment for this industry, the effects ripple outward.

Engemasa is not asking for protection. We are not asking for preference. We are asking the USTR to recognize three facts. One, centrifugally-cast high-temperature allow reformer tubes have no sufficient capacity. Two, American operators depend on them for operational continuity. And, three, the proposed tariffs on the tubes will make U.S. industry less competitive while redirecting procurement toward China.

We respectively request the USTR to remove the civil aircraft limitation from the exception applicable to HTS 8419.90.30. I welcome any questions. Thank you.

MS. PASTER: Thank you, Mr. Baroni. Mr. Saverse, you have the floor.

MR. SAVERSE: My name is Atom Saverse. I am the VP of operations for Isolatek International, a 150-year-old company who specializes historically in fireproofing materials over the last 50 years, and insulation before that.

Vermiculite is the backbone of my product. Overall, this type of materials, whether from me or from a competitor, protects approximately 70 percent of the structural steel of buildings that are getting erected in the United States, covering schools, hospitals, and certainly most recently, AI data centers and ship fab companies.

So, the importance of that, and vermiculite in there, it's critical to its operation. Our products are all developed and approved under Underwriters Laboratory, and the end of that, after somewhere around five years of testing and often millions of dollars, is a very strict formula that we must maintain and stay within.

So, as vermiculite changes from source to source, as it's a naturally occurring mineral, we are very subject to what we can and can't use. And when it comes to sources such as Brazil, in South America, augmenting what's available from the United States, we have proven

now over the last 15 years to be the only source of material that's actually usable.

So, as I said, it's a naturally occurring mineral, and when we looked at the sources that come from the United States, both out of West Virginia, as well as out of South Carolina, it's simply not suitable for my purposes. They make a good product for its use, but the size and the characteristics of that make it unusable both for my products, but many other products that Mr. Wilton mentioned for use in the United States.

The only alternative outsource for that is my competitor, a very good company, but they happen to be French-owned, and the majority of the product that comes into the United States is produced in Canada. So add maybe 25 percent tariff, and additionally another 12 and a half percent on top of that, puts me at a competitive disadvantage for a product that's all technology, but because there are such high problems with getting and developing

formulations out there, getting an alternative or another technology just is not feasible. And so, for these reasons, I request that you look at excluding vermiculite under 2530.10 from the 301 tariffs. Thank you.

MS. PASTER: Thank you, Mr. Saverse. Our final panelist will be Mr. Brightbill.

MR. BRIGHTBILL: Good afternoon. I am Tim Brightbill from Wiley Rein, testifying for the Coalition of American Millwork Producers, or CAMP. I am here today on behalf of the following members of CAMP: Bright Wood Corporation, Cascade Wood Products, Endura Products, Menzner Lumber & Supply Company, Sierra Pacific Industries, and Sunset Moulding.

Thank you to USTR and the rest of the Section 301 Committee for your hard work on this investigation, and for the opportunity to testify on these issues. I will focus my comments on illegal deforestation today, an issue of great concern to our coalition. Illegally sourced timber products around the

world contribute to distorted global prices, forcing U.S. producers to compete with artificially low cost wood products.

CAMP is a coalition of U.S. wood moulding and millwork producers, and the petitioner in trade remedy cases involving these products. Brazil was the single largest source of imports of wood mouldings and millwork products to the United States in 2025, last year, with more than $234 million in shipments. The United States is an attractive market, and a leading destination for exports of wood products from Brazil. These artificially low priced products make their way into the U.S. market, placing the domestic industry at a significant disadvantage.

Illegal deforestation is one of several practices that have allowed Brazilian products to capture a substantial percentage of the market share for mouldings and millwork products. There is no question that deforestation in the Amazon region has soared in

the last 10 years, is highly damaging, and is in large part due to illegal logging practices. Some parties estimate that the vast majority of Brazilian deforestation for agricultural purposes is illegal. And, as Ambassador Azevedo testified this morning, Brazil faces enormous enforcement challenges in this area. We agree.

A 25 percent tariff on wood products from Brazil, which currently includes wood mouldings in its proposed scope, would help address these enormous challenges. It would also help to address Brazilian illegal deforestation practices by reducing demand for Brazilian wood products in the U.S., which is a critical market for its exports.

So, the Coalition supports the proposed tariff and requests that the tariff codes covering wood mouldings and millwork products continue to be included in the proposed action. These codes, all in Chapter 44, are not currently subject to the Section 232 national security duties on some other wood products.

The domestic industry has readily available capacity to meet increased demand for mouldings and millwork products. Including these products in the action would not only mitigate the cost competitive advantage that foreign benefitting from forced labor inputs, but also reduce demand for products of illegal deforestation.

The inclusion of wood products, a critical export industry for Brazil, in this action is important to compel Brazil to act on illegal deforestation practices and the other important issues raised in this investigation, digital trade, preferential tariffs, anti-corruption enforcement, intellectual property protection, and ethanol market access.

In closing, imports produced from products of illegal deforestation are a pervasive issue that significantly harms domestic millwork producers. This tariff action is an important step to address Brazil's acts, policies, and practices. USTR should impose

additional duties as proposed on wood mouldings and millwork products from Brazil. Thanks again for your time and attention, and I'm happy to answer any questions you have.

MS. PASTER: Thank you, panelists. We will move to questions now. Before we get started I would just like to ask our agency representatives to please reintroduce yourselves as you ask your question. So, we will start first with Department of Commerce.

MR. REYNOLDS: Hello. I am Tobias Reynolds from Department of Commerce. And this is a question for Mr. Baroni. Do you only produce components under HTS 8419.90.30 in Brazil? And where do your direct competitors have production facilities?

MR. BARONI: Thank you for the question. Yes, we produce components under this HTS code and another one I had provided on the questions. And a competitor is, there are American firms, a German company that is the market leader, a French-British group, a

Japanese company, and Chinese players, one of whom is state-backed.

MR. REYNOLDS: Thank you.

MS. PASTER: Thank you. So, next we are going to proceed with USDA.

MS. GHADIALI: This question is for the rest of the panel, starting with the Ambassador. And I will change it for Mr. Brightbill, given your testimony, but the question for the rest of the panel is, can you please elaborate on the extent to which the product for which you request an exemption is available from alternative sources, including from domestic and non-Brazilian third country sources, at comparable prices and quantities.

And for Mr. Brightbill, in your case, just a question about alternative sources for your testimony. Thank you.

MR. AZEVEDO: I have to tell you I couldn't hear very well. I think you were speaking off-mic. Could you --

MS. GHADIALI: I will repeat the

question. Is this better? So, the question is, can you please elaborate on the extent to which the product for which you request an exemption is available from alternative sources, including from domestic and non-Brazilian third country sources, at comparable prices and quantities? And this is a question for the rest of the panel.

And for Mr. Brightbill, if you could share alternative sources, understanding that you have not asked for an exemption. Thank you.

MR. AZEVEDO: Yes, that's perfect. Thank you so much. My apologies for asking you to repeat your question. So, as far as CSN is concerned, the main focus of our request is that we assure that products that are currently under Section 232 remedies, that they are not included in the 301 remedies this time around.

In fact, when we were answering the request for comments, the very first question that USTR poses is whether we agree with exclusion of articles that are subject to

Section 232 to the 301 remedies. And we wholeheartedly agree with that. So, we want to make sure that those products are not included.

As far as tin mill products themselves are concerned, there are other suppliers. The point that we make is that about three quarters of the tin mill demand in the U.S. is satisfied by imports. Brazil is about one percent. So, we don't really compete with American producers or any other significant manufacturers in the U.S. What we want is to not be discriminated in light of the other producers who are also in the market. But, again, they are under Section 232, so as long as we're not including a double remedy, that is the extent of our request at this point in time.

MS. COLUCH: Thank you for your question. Yes, there are four sources of ceramic tiles coming to the U.S., and they account for 63 percent of U.S. imports. Those are Spain, Italy, India, and Mexico, U.S. having recently filed and concluded on an antidumping

investigation against India. So, there are three other sources if you exclude India. And tariffs would further concentrate imports of tiles, making the U.S. even more dependent on those very few countries, concentrating supply, instead of diversifying it.

And I do have the price ranges of square feet for ceramic tiles. Those are TCNA's numbers, Tile Council of North America numbers. The value per square feet in 2025 for Spain was 41.72 per square feet, Italy $2.33 per square feet, India $0.62 per square feet, Mexico .85, and Brazil $0.89 per square feet. So, those are very competitive prices, Brazil prices are very competitive. And putting a 25 percent tariff over Brazilian product would increase the cost of tiles in the U.S. market.

And I would like to add that increased U.S. production takes a long time. Ceramic tile production requires complex environmental permits, and up to three years spent building the manufacturing facilities or expanding

existing ones. It's a long-term endeavor. It cannot be done in 12 months. Thank you.

MS. GHADIALI: Mr. Machado, if you would like to answer the question? Thank you.

MR. MACHADO: Yes, there are. As I said, we supply 50 percent of the imported vermiculite. The rest is supplied by a South African mine owned by a Chinese state-owned company. So, that would result in less competition, in an undesirable monopoly for the Chinese-owned company.

Those are the biggest two suppliers, Brazil and South Africa. And it's a critical, unique mineral, and Mother Nature did not put enough vermiculite in American soil. So that's why it's needed for a wide range of products, going from fireproofing, to food production, brake pads. So it's a unique, irreplaceable, and very strategic mineral.

MR. BARONI: And thank you for your question. In our case, the main sources would be, in the U.S., as I mentioned, the companies

are at capacity and haven't announced public announcements of investments, European suppliers that have extensive lead times, as well as the Japanese firm that I mentioned. And the Chinese competitors have been trying to tap into the market for a long time. There is a price difference compared to us, and if the price difference becomes bigger, I'm afraid they're going to be successful in their endeavor, although clients are reluctant to do that. And although we are a niche equipment, this is critical to the operation of any petrochemical company or refinery because it is the hottest part of the operation and the plant cannot run without our equipment. We are the only ones in the Southern Hemisphere that can make that.

MR. SAVERSE: From my side of things, I think I mentioned before, there are two U.S. suppliers, the West Virginia company has had a chance to offer me any allotment of their material, so they are on allocation, as I've been told from other people they supply. In the

case of the South Carolina supplier, they have offered to supply me up to 20 percent of my material. I have done three full scale testings over the last year and a half, and none of their products, none of their samples, have allowed me to make a product that I can maintain my UL specification, so, for me, they're just not a usable project.

If I looked historically now over the last 10 years, our primarily suppliers have been a combination of either Brazil or South Africa. One of the concerns of South Africa is four years ago they just willy-nilly decided to stop shipping to the U.S. market, and have yet to come back in again. So, for me, stability of supply, and making sure to have a product that meets my characteristics, are critical.

Outside of those two, there are other sources throughout the globe. But one of the unfortunate characteristics of vermiculite is it's often found in proximity to asbestos. So, we're very particular on the sources that we get

it from, and, historically, along with the source out of South Carolina, Brazil, and South Africa, those are the only sources that I would approve to be using in a U.S. domestic product.

MR. BUTLER: Mr. Brightbill, as you discussed domestic sources, it would be helpful if you could discuss capacity, domestic capacity, and its ability to supply domestic demand.

MR. BRIGHTBILL: Absolutely, that's right where I was going, so thank you for that question. Yes, first and foremost, the U.S. industry has plenty of available capacity to supply wood mouldings and millwork products. The actual data is proprietary, but I can assure you, and the commission has looked at this before, that you have U.S. producers -- all of the companies that I listed at the start of our testimony, and other U.S. producers, are ready and able to make additional wood moulding and millwork products.

I will note we monitor input sources

regularly every month. I can tell you China is not a source of imports, because we brought and won antidumping and subsidy cases because of the unfair trade practices of China. But there are other import sources, if necessary. Chile is one of those. But, again, the domestic industry is able to greatly increase production and supply. Thank you.

MS. PASTER: Thank you. So, with that, we can conclude Panel 10. We are going to take a longer break now for lunch, and we will reconvene at 2:00 o'clock here back in this room. As folks collect their lunch, just be mindful of the security line. Again, we still have the other hearing going on in the room across the hall. And they are probably also breaking for lunch around the same time, so just anticipate some longer times as we get back in here. Thank you.

(Whereupon, the above-entitled matter went off the record at 12:54 p.m. and resumed at 2:02 p.m.)

MS. PASTER: All right, welcome back everyone. We'll go ahead and get started. So, next we're going to proceed with Panel 11.

And, just again, as a reminder, panelists, your testimony is limited to five minutes, and we're keeping track up here. And, apologies that we don't have the same technology as we have in the other hearing room with the colored reminders of your time. But, we'll give a reminder once you reach five minutes, to please complete.

Maybe, actually, before we launch into testimony, I might give a moment to have our agency representatives reintroduce themselves, since we've had folks come in and out of the room.

So, I will start with the Department of Commerce.

MS. PANDOLPH: I'm Rebecca Pandolph from the Department of Commerce.

MS. SULLIVAN: Good afternoon, Sarah Sullivan from the Department of the Treasury.

MR. HUBLER: Good afternoon, Tyler Hubler with USDA.

MR. HICKS: Good afternoon, Randall Hicks, Office of Trade and Labor Affairs, U.S. Department of Labor.

MS. MAPATANO: Good afternoon, Dawn Mapatano with Department of Health and Human Services.

MS. PASTER: Great. Thank you everyone. And, once again, I'm Megan Paster with USTR.

Just again, as a final reminder, there should be no recording or video cameras as we proceed with testimony. So, with that, we'll begin with Mr. Slaughter.

Sorry, Mr. Slaughter, if you could just turn your mic on.

MR. SLAUGHTER: Okay.

MS. PASTER: Perfect. Thank you.

MR. SLAUGHTER: Thank you. Good afternoon to the distinguished panel. Thank you for the opportunity to be here to testify on

behalf of my company and our industry.

I'm the Senior Vice President, General Counsel and Corporate Secretary of Rayonier Advanced Materials, or RYAM. RYAM employs approximately 1,500 workers, and supports nearly 8,000 indirect jobs across the rural Southeast, primarily Northeast Florida and Southeast Georgia.

More broadly, the decline of the U.S. pulp and paper sector has resulted in tens of thousands of lost jobs over the past decade. RYAM produces high purity dissolving bulk, a wood-derived specialty cellulose used in applications ranging from liquid crystal displays and filtration, to pharmaceuticals and industrial materials.

Critically, RYAM produces the upstream feedstock for nitrocellulose used in U.S. military propellants, explosives, and emissions. Our Fernandina Beach facility is the only U.S. plant currently producing qualified nitrocellulose grade material for Department of

War applications.

Today, RYAM is the sole remaining U.S. producer of high purity dissolving pulp. That reality underscores the urgency of the issues before this panel.

One of the most significant threats to this critical domestic industry is continued exposure to artificially low-priced imports from Brazil. We appreciate the U.S. Trade Representative's findings that Brazil's preferential policies and deforestation practices are actionable.

However, we also respectfully urge USTR to remove HTS 4702 from the exemption annex. As long as this exemption remains, Brazilian producer Bracell can continue to undercut U.S. prices and displace domestic production despite the findings of this investigation.

First, Brazil's trade framework is not reciprocal. While Brazilian high purity dissolving pulp enters the United States market duty-free, Brazil maintains duties on imports of

the same product from the United States.

That asymmetry reflects a broader policy environment that advantages Brazilian producers in global markets while limiting opportunities for U.S. exports.

In addition, Brazil provides a wide range of subsidies to more than 30 different programs that reduce capital and operating costs and encourage export oriented production. The result is structural overcapacity that is pushed into export markets, including the United States, at unfairly low prices.

Second, Brazil's lack of effective environmental enforcement creates a structural cost advantage that directly benefits its pulp exports. Widespread illegal deforestation lowers land and input costs, and weak enforcement allows these practices to persist.

Even where producers disclaim direct involvement, pulp mills depend on large stable timber supplies. Land that has already been cleared is often sold at a premium to pulp

producers because it comes with existing infrastructure, allowing initial actors to move onto cheaper undeveloped land.

That cycle perpetuates deforestation while lowering input costs for downstream producers, a dynamic that is not available to U.S. manufacturers operating under strictly enforced environmental standards.

Taken together, these policies create a structural disadvantage for U.S. producers and distort competition in the global dissolving pulp market. That is why the exemption for HTS 4702 is not consistent with the standards the Trade Representative has articulated for exclusion.

Coverage of this product would directly address the practices under investigation, because those practices are clearly present in this industry and materially impact U.S. production.

At the same time, including HTS 4702 would not create economy-wide disruption, as it

affects only a single domestic producer and a limited number of downstream users, all of whom have access to domestic supply.

Finally, maintaining the exemption would create inconsistency across U.S. trade policy. The proposed Forced Labor Section 301 action covering Brazil does not exempt HTS 4702.

In addition, the Department of Commerce has already issued preliminary affirmative anti-dumping and countervailing duty determinations on imports of high purity dissolving pulp from Brazil, including HTS 4702 and the Brazil specific Section 301 action would align this proceeding with a broader federal effort to address unfair trade.

In conclusion, RYAM respectfully requests that USTR remove HTSUS subheading 4702 from the exemption annex. These investigations present a critical opportunity to restore a level playing field, preserve America's last domestic producer of a defense critical material, ensure that U.S. manufacturing

capacity is not displaced by Brazil's unreasonable and discriminatory practices.

On behalf of RYAM, I appreciate the opportunity to participate in this proceeding and stand ready to assist USTR.

MS. PASTER: Thank you, Mr. Slaughter. Next, we have Mr. Busnello.

MR. BUSNELLO: Good afternoon, dear Chairwoman and the distinguished members of the panel. I am Homero Busnello, Institutional Relations Director at the Tecumseh do Brasil.

Tecumseh was founded in 1934 in the city of Tecumseh, in the state of Michigan, United States. The company headquarters is in Ann Arbor, also in Michigan, and operations are located in Tupelo, Mississippi. Tecumseh operations in Brazil are situated in Sao Carlos, state of Sao Paulo, Brazil.

The tariff hike as proposed and presented under Section 201 has the potential to harm intercompany sales between the Tecumseh Brazilian subsidiary and the U.S. parent

company.

Tecumseh manufactures unit compressors, which serve as the heart of a refrigeration system. Both companies in Brazil and the U.S. are interconnected in a strongly reliable, added value, and limited alternative source.

Our products touch the lives of millions of American families, whether in refrigerated products or true thermal comfort. Tecumseh operations based in Tupelo, Mississippi plays a central role in serving the U.S. market, also include exports. I will give two examples of these interconnections in both companies.

One is compressors acquired for refrigeration. In the picture you have in the paper, our plant in Tupelo receives the compressor on the left side of the page, and these can be sold across the U.S. market. Or the same compressor can be assembled in a so-called condenser unit, used also for refrigeration and with more added value.

The ratio here is between eight to 10

times more. Each dollar you pay, you will earn $8 to $10 plus. So, this is an American product then.

The second example is air conditioning rotary compressor. Tecumseh is the only company in the west hemisphere capable of manufacturing this rotary compressor technology. All other competitors are based in China, Japan, and South Korea.

On the image again, we have a 3D view of the rotary compressor. On the top, you will see the two flags, American flags. You have electrical motors inside the compressor.

And, this item is 100 percent manufactured here in the U.S. When you see the two Brazilian flags means items are supplied from Brazil sites to Tupelo site in the U.S. Those items are the ones being charged with the tariff.

All these products have special certifications on them, and the rights of other parts, for example, CSA in Canada and so on.

And, these required something interesting. Inside of this electrical motor that is assembled here in the U.S. there are the magnets, the permanent magnets that is famous neodymium, one hundred percent imported from China

So, Tecumseh Brazil is developing together with the local university federal, Sao Carlos, a new alloy to use raw material that we have in the country to industrialize in three years as a potential supply for our plant in Brazil, and as well for our plant in the U.S.

The tariff hike took place of 2025, and whose effects are still being felt today. It's causing a drop in sales. Now, this industry fights for every penny in cost reduction.

Tecumseh sales in '26 show an 13.5 percent decline compared to '25 sales. Our main customers, where you can find our products installed, are in the refrigeration cabinets in commercial markets. For example, Whole Foods, McDonald's, Walmart, Kroger, Target, pharmacies,

CVS, Walgreens, and so on.

And, the air conditioning version of our products, technology that's just here in the west hemisphere, we have Bergstrom to cool down cabins from trucks or wider systems, BAE systems, defense industry in Virginia. CSafe container that can transport vaccines and medicines, as examples. There are many others.

Conclusion, tariff increases applied to products from Brazil and inter-company transactions directly affect Tecumseh sales in the United States. The impacts have heavy rates to help its supply chain, including Tecumseh manufacturing operations in Tupelo, Mississippi and its customers in the U.S. and abroad.

Consequently, the natural source of U.S. compressor replacements are Chinese manufacturers. They are driven by subsided costs. Consider the fact that the arguments here will respectfully request the inclusion of the relevant HTS 8414.30.40, 8414.30.80, and 8414.90.41, codes on the recent tariff

exclusion.

Thank you for this opportunity, and I'm open to answer your questions.

MS. PASTER: Thank you, Mr. Busnello. Mr. Vorhees, you can proceed.

MR. VORHEES: Good afternoon and thank you for the opportunity to appear today. My name is Bret Vorhees. I'm the President and CEO of Taurus Holdings Inc.

And, I appear today on behalf of Taurus Holdings, Magtech Ammunition Company, and CBC USA Ammunition Company, companies that together form one of the leading suppliers of affordable and reliable firearms and ammunition in the United States.

We are here because we share the Administration's goals, more manufacturing in America, more high quality jobs, and a more resilient domestic industrial base. We ask only that those goals be protected, not inadvertently undermined by USTR's proposed tariff action.

Besides importing significant volumes

of firearms, ammunition, and components from Brazil, Taurus and CBC have significant and growing domestic manufacturing operations in Georgia, and are breaking ground on a new ammunition factory in Oklahoma, which will be the largest Brazilian manufacturing investment in the United States in the past few years.

Since relocating to Bainbridge, Georgia in 2019, Taurus has invested over $37 million in its manufacturing facility, produced over three million firearms, and created approximately 230 skilled jobs.

A plan for an additional $30 million in capital expenditures, together with near doubling the facility's workforce with further localized production that was previously offshore.

In Oklahoma, CBC Global Ammunition Group has launched a $300 million investment in a new facility. Its first fully vertically integrated ammunition manufacturing plant outside of Brazil.

Once complete, the facility will produce all major components of ammunition onsite and is expected to create more than 400 high-skilled well-paying jobs.

In total, Taurus and CBC's committed U.S. manufacturing investments exceed $300 million and directly support federal objectives to reach our production, strengthen domestic industrial capacity, and build resilient supply chains for national security critical product lines.

One of those security critical product lines is nitrocellulose, a critical energetic material used in ammunition, specifically smokeless gunpowder. Only a few production facilities in the Western hemisphere produce nitrocellulose, and CBC's new facility will have a scalable capacity that could exceed the United States' total import volumes.

We are building in America, we have invested in America, and we will continue growing our U.S. manufacturing. We ask USTR to

not make that harder on us.

USTR's proposed tariffs on imports from Brazil would harm those investments in two ways. First, they would raise costs for the specialized equipment and imports that the Oklahoma facility requires to complete construction.

That equipment is not available from U.S. suppliers on the required timeline, and it must be procured from CBC's Brazilian facilities and other specialty suppliers.

Attempting to qualify new U.S. suppliers would require lengthy technical onboarding and re-engineering phases. That is time and additional costs that the project does not have.

Second, the tariffs would erode the commercial revenues that fund these capital expenditures that the company has experienced in 2025. Tariffs that materially reduce Taurus and CBC's revenue would directly constrain CBC's ability to finance, complete, and operate the

Oklahoma facility.

Beyond the investment risk, consider who pays the cost. Brazil accounts for approximately 19 percent of total U.S. ammunition imports, making it the largest foreign source of ammunition.

And, that supply is provided entirely by CBC. No U.S. manufacturer currently produces training grade ammunition at a scale sufficient to replace that supply.

The proposed tariffs would impose a disproportionate burden on Americans with low to moderate incomes, who rely on Taurus and CBC's products for access to affordable firearms and training ammunition. These are hardworking Americans who operate under fixed budgets, and for whom higher ammunition prices directly reduce training frequency with material consequences for safety and proficiency.

There is also a compounding tax concern. The federal firearms and ammunition excise tax already applies to Taurus and CBC

products at the point of every U.S. sale. Through this tax, the company's sales support wildlife conservation, public land use, and firearm safety programs nationwide.

Layering additional Section 301 tariffs on top of that risks suppressing demand, which would in turn reduce the excise tax revenues and undermine the programs that those revenues fund.

Finally, and most directly, the acts, policies, and practices of Brazil that USTR has identified do not involve the firearm industry. Imposing remedial tariffs on the firearm sector would not be a practical or effective approach to resolving any of the market distortions USTR has identified.

Including firearms, ammunition, and manufacturing equipment in the proposed tariff action would not remedy these acts, policies, and practices that form the basis of this investigation. It would cause immediate supply dislocations, jeopardize more than $300 million in committed U.S. manufacturing investments and

hundreds of jobs, and impose compounding costs on American consumers, pricing Americans out of their ability to exercise their Second Amendment rights. Accordingly --

MS. PASTER: You are out of time. So, please conclude.

MR. VORHEES: All right. We respectfully request that USTR add the HTS subheadings for firearms, ammunition, and related manufacturing equipment in the annex of excluded products in any final tariff action.

A comprehensive list of those HTS codes are in our comments. Thank you, and we welcome any questions from this panel.

MS. PASTER: Thank you, Mr. Vorhees. Mr. Bauer, you have the floor.

MR. BAUER: Good afternoon, USTR and committee. Thank you for the opportunity today to provide testimony regarding the proposed action in Section 301 investigation for Brazil.

My name is Timothy Bauer, Vice President of Amyris Inc. And, I'm appearing

today on behalf of Amyris, a U.S.-based biomanufacturing company headquartered in Emeryville, California with an advanced bioconversion operation in Leland, North Carolina.

Founded in 2003, Amyris has developed a biotechnology platform over the past 20 years that enables the production of complex high-value molecules utilizing industrial precision fermentation processes. To date, we have commercialized 16 molecules, following more than $1 billion in cumulative investment.

These molecules are high-value ingredients used in cosmetics, personal care, pharmaceutical, and defense-related applications.

Amyris respectfully requests that farnesene classified under HTSUS 2901.29.50 be excluded from the proposed 25 percent tariff on goods of Brazil. We strongly support the Administration's goal of strengthening American manufacturing, protecting critical supply

chains, and expanding high quality U.S. jobs.

But, applying this tariff to farnesene would have the opposite effect, with the unintended consequence of directly harming a U.S.-based manufacturing operation that depends on this highly specialized input that has no viable domestic U.S. alternative source.

In joint effort with our partner supplier, we have previously met directly with the Office of Trade and Manufacturing Policy and the U.S. Department of Commerce to discuss the matter of exempting farnesene from USTA tariffs. There was broad understanding that any tariff on farnesene would have a negative impact on the intended outcome of protecting American manufacturing from unfair foreign competition. Amyris uses farnesene to manufacture squalane and hydrogenated dye farnesene or HDF.

Our Leland, North Carolina facility Apranova, represents approximately $200 million in U.S. investment and employs more than 40 skilled American workers. That facility

produces more than half of the world's squalane.

But, to do that work in the United States, we must import farnesene from DSM-Firmenich's biomanufacturing operation in Brazil.

This sourcing decision is driven by scientific necessity. Farnesene is produced through a specialized fermentation process using engineered microorganisms and Brazilian sugarcane feedstock. These microorganisms in that process have been developed over many years and cannot simply be replicated or shifted to another supplier.

Today, there is no U.S. producer of farnesene and no third country supplier that can produce at the scale, quality, and consistency that is required by our manufacturing facility in Leland. Farnesene is a foundational input for the U.S. manufacturing of sustainable squalane.

Historically, squalane was derived from shark liver oil that has been extracted after

hunting and killing deep sea sharks. Through biotechnology, Amyris and DSM-Firmenich helped create a chemically identical sustainable alternative from sugarcane, eliminating reliance on animal harvesting and positioning the United States as a leader in renewable biomanufacturing.

Once the farnesene arrives in North Carolina, American workers convert it into high-value ingredients for U.S. and global markets.

If the proposed tariffs are applied, Amyris could face a cumulative tariff burden of up to 37.5 percent on this critical input when combined with the separate proposed forced labor-related Section 301 tariff that would substantially increase our input costs, severely undermine the economics of our Leland facility, and place U.S. jobs and investment at risk.

We also note that HTSUS 2901.29.50 is a residual basket category covering multiple unsaturated hydrocarbons not derived from petroleum, shale oil, or natural gas. The very

small quantity of imports under that classification from other countries are not farnesene and are not suitable substitutes for the product Amyris imports from Brazil.

Such an American First exclusion would also strengthen U.S. competitiveness against China. Chinese companies are increasingly attempting to copy our technology and compete in these ingredients, often through unfair practices, which were highlighted in Amyris's testimony during the recent U.S. International Trade Commission's fact-finding hearing on impact on U.S. industry of China's state support and pricing practices in the biotechnology sector.

These activities add pressure to the U.S. production and would only accelerate erosion of American leadership in the strategic biotechnology sector.

For these reasons, Amyris respectfully requests that farnesene under HTS US 2901.29.50 be added to the annex of excluded products.

This targeted exclusion will protect U.S. manufacturing, preserve American jobs, support domestic biomanufacturing leadership, and help ensure that critical production remains anchored in the United States.

Thank you for the opportunity to testify and your attention on this important matter. I'm happy to field questions as appropriate. Thank you.

MS. PASTER: Thank you, Mr. Bauer. Next, Mr. Kaplan, you have the floor.

MR. KAPLAN: Thank you for the opportunity to appear here today. My name is Mark Kaplan, President of Consolidated Mill Supply, the largest supplier of pig iron to steel mills and foundries in the U.S.

I am here today to request the exclusion of pig iron from tariffs against Brazil. Pig iron does not fall under any of the stated 301 practices.

Pig iron, HTS code 7201.10, is a critical raw material for virtually all iron

foundries in over 70 percent of the U.S. steel industry. Most importantly, merchant pig iron is not and cannot be produced economically in the U.S. in volumes or qualities required by our steel mills and foundries.

If it were viable or desirable to make pig iron in the U.S., companies would have been doing it for decades. The fact is only two companies can actually produce pig iron domestically and they don't want to because it's not cost effective.

Even if they did, together they only have enough capacity to produce about 7 percent of the total U.S. pig iron demand. But, they both keep their output captive, so 93 percent of our market would still require imports for years to come.

One of those two companies has made repeated public statements that even if they did produce pig iron, they would not sell it to their competitors.

The other only started producing pig

iron as a temporary reaction to the war in Ukraine. Their entire production goes to one of their steel mills, and even with that, it must still import 70 percent of its requirements.

I've been asked to partner with over a dozen domestic pig iron projects over the past 20 years, but not one has been workable. Even bad projects cannot be producing pig iron in less than three years at a minimum based on their own estimates.

And, even if built at some point, there is no scenario in which it is not economically disadvantageous when compared to every market we can import from, making it inefficient for the U.S. economy. Most of these have folded, but I'll quickly highlight three of the current domestic pig iron stories and why they will not work.

One submitted a document asking that you not exclude pig iron from these tariffs. That document basically says they've achieved nothing in five years so far and will only have

a chance of emerging if the government artificially raises prices enough to allow them to succeed at some unknown future date.

The second wants to build in a place solely due to a tax break and tells a story about how their logistics are their advantage over imports. The truth is, their logistics will be much more costly and less reliable than the import supply chain. But, I don't have time to go on all those reasons here today.

The third is a $3 billion project that is no less than three years away, if it were to happen at all. Their logistics would work, but they have no iron ore source, no firm plan for production, no permitting, and no financing.

In addition, if one could build three million tons of steel for $3 billion, it does not make economic sense to spend the same amount of money, for less tonnage of a product, worth less than half the value of steel.

One could not build a new blast furnace in the U.S. today due to environmental

regulations. That means that any new company that wants to produce pig iron domestically must use an unproven and more expensive process, which is neither efficient nor viable today.

There's simply no logic in putting a tariff on pig iron, a critical raw material we do not and cannot make in the U.S. in an economically viable way anytime soon.

Brazil is the best pig iron source for the U.S. It has the lowest carbon footprint of any pig iron production in the world. It's geographically situated to supply the U.S., and it's a well-established supply chain.

Not excluding pig iron from tariffs on Brazil will not only harm U.S. steel mills, it will decimate the U.S. foundry industry by arbitrarily increasing their cost for material that they cannot get anywhere else at a time when they're already struggling to survive.

The decision not to include pig iron in the additional 40 percent tariff on Brazil in July 2025, shows that you understand everything

I have said today to be accurate. We ask that you repeat that correct line of thinking and continue to exclude this critical raw material from tariffs on Brazil going forward.

At the very least, any imposition of a tariff on pig iron should be delayed for three to five years, to give time for production to be built in the United States to replace it.

Not one of the many domestic pig iron projects explored over the past 20 years were ever built, because they would do more harm than good for the U.S. industry and the consumer.

You have my contact information. And, I remain at your disposal to provide any data needed or answer any questions as you navigate this important issue.

I appreciate your time and consideration. Thank you.

MS. PASTER: Thank you, Mr. Kaplan. With that, we'll proceed to questions. I believe our first question for Panel 11 will come from the Department of Labor.

And, once again, to my agency colleagues, please just go ahead and introduce yourself before your question.

MR. HICKS: Thank you. And, good afternoon. Once again, my name is Randall Hicks with the Department of Labor, Office of Trade and Labor Affairs.

This first question is for Mr. Slaughter from RYAM. How important are Brazilian imports to fully satisfying U.S. demand for public related products?

What impact would tariffs and relevant Brazilian products have for the U.S. cellulose-based technology industry generally and for the American workers that RYAM employs or help support specifically?

MR. SLAUGHTER: Yes, thank you. So, the current domestic capacity, which as I mentioned earlier, is now comprised solely of RYAM.

Even after taking into account closures of dissolving wood pulp facilities, is more than

ample to meet the domestic dissolving wood pulp demand. And, that's comprised of four lines across two assets in the Southeast that fall within the RYAMN asset base.

I'm sorry, what was the subsequent question?

MR. HICKS: What impact would tariffs on relevant Brazilian products have for the U.S. cellulose-based technology industry generally and for the American workers that RYAM imports and helps support specifically?

MR. SLAUGHTER: Yeah. I mean the pulp and paper industry generally is really a backbone of the forestry industry in the U.S. Southeast. And, you know, each pulp mill essentially serves as the backbone for an ecosystem that comprises the timber industry, lumber sawmills.

And, the viability of a lumber sawmill, for example, depends on the ability to sell residual chips for manufacturing of pulp and paper, including dissolving wood pulp.

And, from the standpoint of U.S. employment, you know, it's critical to U.S. employment, as I mentioned in my testimony. Fifteen hundred workers are employed in the Southeast by RYAM directly. But, indirectly that supports 8,000 regional jobs, you know, capital investments annually in excess of $60 million.

And, from the standpoint of the ultimate impact on the consumer, this is a front end ingredient that undergoes multiple changes throughout the supply chain process before it ends up into the hands of the ultimate consumer.

So, we believe the impact of leveling the playing field here would be negligible on the ultimate consumer.

MR. HICKS: Thank you very much.

MR. HUBLER: Good afternoon, my name is Tyler Hubler, and I work for the U.S. Department of Agriculture. This question is for all of our remaining panelists.

Can you please elaborate on the extent

to which the product which you request an exemption is available from alternative sources, including from U.S. domestic and non-Brazilian third-country sources at conveyable prices and quantities.

And, we can start with Mr. Busnello if you'd like to respond, and go down the line. Thank you.

MR. BUSNELLO: Okay. In fact, we have the operations here in the U.S. So, you know, if I can answer your question, is we are regularly manufacturing here compressors. And, Tecumseh is the only company doing such of products here in the U.S. There is no other in this country. You can find sources, parts of them in Mexico and Asia. That's all.

And, when we talk about air conditioning, compressors itself, there is no one in America, unless Tecumseh, in Brazil and here in the U.S. Thank you.

MR. VORHEES: For the firearm and ammunition companies, we serve as kind of the

entry price point of our product categories. And, the domestic suppliers that would be our competitors in this scenario typically are priced a little bit higher than our products are.

In terms of sourcing our own products here domestically, you're talking about either a significant investment in machinery, one of which CBC is doing with the ammunition factory. That's their goal, and why they are asking for the exemption, is to provide the resources and capital to complete that investment.

But, for the firearm side, we really have two options to produce domestically. One is a substantial investment in the machinery required to produce the components, or looking at external suppliers, which the capacity does not exist today, and would need to be developed over a long period of time.

One important part of sourcing any components for firearms, is the quality and engineering validation of those components,

because the tolerances are so critical and the implications of a quality defect in a firearm is dire.

And so, the lead time of developing supply chains for any one product line could take 18 to 24 months. Our company has over 60 different product lines that we would be looking at extending that out to.

So, it's not really a viable option in the short term for us.

MR. BAUER: Thanks for the question. So, at Amyris, we import the farnesene to produce a product called squalane. That squalane, as I've mentioned, can be sourced from, you know, deep sea sharks, from their liver oil.

Alternatively, there is some supply that's a vegetable-based supply out of Europe from olive oil extraction. And then, we are seeing, as I mentioned, also increasing significant competition from a copy and paste of what Amyris is doing out of China, as being the

main sources.

But, Amyris remains as the only U.S.-based manufacturer of this product.

MR. KAPLAN: Thank you for the question. You asked about other places that we could source on price and quantity from those standpoints. But, a lot of things I'm hearing today, and pig iron included, there's a third component.

There's a quality piece that matters also. So, price and quantity are not the only two issues at play. There is a true quality issue.

So, for alternative sources, if you're talking about, many foundries in the United States because of the quality they require, there is no substitute for the pig iron they get from Brazil.

And, for steel mills, there are other sources. We source pig iron from Ukraine. Ukraine has lost 60 percent of their capacity already, and they're still at war. So, that's

very tenuous.

We currently get about three percent of our demand from India, historically not a very reliable source. But, has come on since the Ukrainian war. They've become a little bit more involved.

Canada and Africa together supply about three percent as well of the U.S. demand. But, without Brazil, there is not enough pig iron currently available elsewhere to replace what would come from Brazil or what would stop coming from Brazil if 25 or 37.5 percent tariffs were done.

MR. HUBLER: Thank you.

MR. BUTLER: Mr. Kaplan, can you address some of the new domestic sources that are coming online, and how much capacity you think they may have and when they might come online?

MR. KAPLAN: In my humble opinion, I don't think they will come online. I think there are projects that are trying to address

certain challenges and trying to meet the, you know, manufacturing in the U.S. idea.

But, they're really not workable. And, these projects have been in the works for so long, their thesis keeps changing.

You know, first, it was to replace pig iron loss because of the war. Then the, you know, the topic of green production became a part.

So, now these are green projects. That didn't work. Now, they're projects because we want to reshore our manufacturing. That also doesn't work.

The projects are too expensive. They don't meet the quality standards for a lot of what we need. And, none of them have been able to secure financing, because they can't secure the basic requirements to actually be able to produce.

So, a lot of them don't have sources of iron ore. If they do, the rest of their project has some issues. You know, I was asked to

review most of these.

People wanted to partner with our company to sell their material. And, if you look at the economic models for these things, they don't make any sense. They're not viable.

So, in my humble opinion, I don't think any of them will actually come online. If they do, at best three years. More likely, probably five.

But, tariffs would have to be very high for a very long time for any of them to make sense.

MR. BUTLER: Thank you.

MS. PASTER: Okay. Thank you panelists. With that, we will conclude. We're going to have a short break before proceeding with Panel 12.

(Whereupon, the above-entitled matter went off the record at 2:40 p.m. and resumed at 2:46 p.m.)

MS. PASTER: Okay. If everyone could please take their seats, we're going to get

started in just one minute.

Great. So, we are back with Panel 12. Ms. Capeloto will be first and will have five minutes.

MS. CAPELOTO: Great. Good afternoon. I am Tessa Capeloto of Wiley Rein, counsel for Century Aluminum. Thank you for this opportunity to testify today.

I also want to thank you for your hard work in this Brazil 301 investigation. I am here today to ask USTR to maintain its exemption from the proposed Section 301 action for smelter-grade aluminum oxide, also known as aluminum.

As I will discuss, this critical raw material used in aluminum production is domestically unavailable.

By way of background, Century is the largest remaining primary aluminum producer in the United States with smelters in Sebree, Kentucky and Mount Holly, South Carolina. In total, Century employees roughly 1,800 workers.

Primary aluminum is a critical mineral and a vital importance to the national security, economy, and clean energy future of the United States.

The United States was once one of the world's largest producers with 22 aluminum smelters. The number of operating plants have dwindled from 14 in 2011 to only four today. To address Brazil's acts, policies, and practices under investigation in this Section 301 proceeding, USTR has proposed a tariff of 25 percent on all U.S. imports from Brazil with certain exemptions, including for raw materials that if subject to the proposed additional tariffs could lead to the unavailability of domestic supply.

Among the raw materials that USTR has identified as being domestically unavailable, includes smelter-grade aluminum oxide under HTS 2818.20. Century strongly supports this exemption.

As Century discussed in its comments to

USTR, this raw material plays a critical role in the aluminum production process. However, there is insufficient production of smelter-grade aluminum oxide in the United States.

In 2026, the United States accounted for less than one percent of global alumina production per the United States geological survey. The United States was number 17 on the top 20 list of alumina producing countries last year, and only one domestic alumina refinery produced alumina for aluminum smelting and specialty grade aluminum last year.

While Century purchases a significant volume of smelter grade aluminum oxide from the domestic source, domestically unavailable alumina is insufficient to supply all of Century's needs.

As a result, in addition to sourcing its alumina domestically, Century must also import this critical input.

In closing, given the lack of domestic smelter grade aluminum oxide available for

purchase, Century urges USTR to continue exempting U.S. imports of smelter grade aluminum oxide under HTS 2818.20 from its proposed Section 301 tariffs on Brazil.

Thank you for your time and attention.

MS. PASTER: Thank you. Next is it Mr. Broking?

MR. BROKING: It is. Thank you.

MS. PASTER: Okay. Please proceed, you have five minutes.

MR. BROKING: Good afternoon, distinguished panel. My name is Joe Broking, and I am the President and Chief Executive Officer of Mesabi Metallics Company LLC.

I greatly appreciate the opportunity to appear before you today to respond to USTR's investigation under Section 301. I also want to recognize my panelists. It's an honor to be alongside them today.

Mesabi Metallics is an American iron ore mining and processing company headquartered in Nashuak, Minnesota on the historic Mesabi

Iron Range.

We've currently invested approximately $2.5 billion dollars to build one of the largest private sector industrial projects in Minnesota's history, a fully integrated mine, beneficiation plant, and pellet plant designed to produce direct reduction grade iron ore pellets.

We are currently mining, with almost 50 people currently active within the mine, and we will begin other production processes in August of this year.

For almost 50 years, no new iron mine or pellet plant was built in the United States. That's not an accident. It reflects the power that a handful of foreign suppliers hold over the high-grade iron ore market.

Mesabi is the first to break that cycle, and we do not want to be the last. When we open, we will create more than 350 direct high-paying, family-sustaining jobs and position the United States for the first time to self-supply its

fully merchant DR grade pellet requirement, making American metal and American iron ore end to end.

I'm here today to ask this panel to take one specific targeted action: remove iron ore pellets HTS 2601.12 from the proposed annex of products not covered by this action. I want to explain why this matters and why the timing is right.

Firstly, iron ore is a critical commodity for the United States. President Trump has recognized it as the essential raw material for steel making, critical to national security, infrastructure, and a broad range of industrial applications.

DR-grade pellets in particular feed the direct reduced iron and electric arc furnace steel making process, and electric arc furnaces account for roughly 70 percent of U.S. steel production.

The problem is this: the United States currently imports approximately 60 percent of

its annual DR grade pellet requirement, and virtually 100 percent of its merchant pellet demand is imported.

Brazil is the dominant source consistently supplying roughly half the U.S. iron ore pellet imports. That is an extraordinary level of foreign dependence for a strategically important product.

Secondly, this dependence only projected to grow. By 2050, U.S. demand for DR-grade pellets expected to increase by more than 90 percent as additional DRA and DRI and EAF steelmaking capacity comes online.

Without action, the United States will become more reliant on Brazil, not less, at a moment when we need to be incentivizing U.S. production.

Thirdly, Mesabi will be able to more than fully replace Brazilian volumes, more than fully replace Brazilian volumes.

We offer a U.S.-based alternative that meets or exceeds rigorous quality specifications

required by our steel producers. We can fulfill U.S. import requirements for many years to come.

That brings me to Brazil's conduct. Large Brazilian producers control the overwhelming majority of DR-grade pellet exports to the United States, and they do not compete on a level playing field.

They dictate quarterly market premiums for DR grade pellets across the merchant market, knowing that their 50 percent global market share gives them pricing power that no single U.S. producer can match, have ties with Chinese financing, and remain disproportionately dependent on China for their total iron ore sales, creating entanglements that raise legitimate national security concerns.

Mesabi and others will continue to invest heavily in the U.S. and scale production precisely, because we intend to compete with these actors over the long term. But, we need a level playing field and we need USTR to stand with us.

We urge USTR to remove iron ore from the annex of products not covered by this action and secure the domestic U.S. supply chain for this critical feedstock.

I again appreciate the opportunity to testify and look forward to any questions.

MS. PASTER: Thank you, Mr. Broking. Mr. Figueiredo.

MR. FIGUEIREDO: Okay. Thank you, Madam Chair. Do you hear me? Okay. Dear committee, my name is Celso Figueiredo, and I speak on behalf of the Sindicato da Industria do Ferro no Estado de Minas Gerais, SINDIFER.

I am accompanied by Mr. Frederico Silva, who is the Director of SINDIFER, who will help me to answer every question that you may have.

SINDIFER respectfully requests that USTR exclude Brazilian pig iron, which includes normal white pig iron, a product that is classified under tariff code 7201.100 from any additional duty adopted in this investigation.

Our testimony is limited to one product, Brazilian pig iron. Applying the proposed 25 percent duty to this product would not address the Brazilian acts, policies, or practices identified in the USTR's regulation.

Pig iron has no relationship with digital trade, electronic planning services, preferential tariffs, anti-corruption enforcement, intellectual property protection, ethanol market access, or illegal deforestation. Brazilian pig iron is not a margin import. It is a strategic industrial import for the United States. It is used by U.S. electric iron firm stimulators and foundries to component for dilute Brazil elements, adjust chemistry to prevail and produce steel castings that need downstream specifications.

Scrap BRI and HBI can complement pig iron, but they cannot fully replace it. In terms of market structure, the United States is dependent on important merchant pig iron, because domestic supply is limited and largely

unavailable to industrial consumers.

In recent years, the United States has imported more than four million tons of pig iron annually. In 2025, the mass production available to the market represented only about five percent of total pig iron consumed in the United States.

Brazil is a leading and reliable supplier. From 1997 through 2025, Brazil exported more than 71 million metric tons of non-available pig iron to the United States.

In the five most recent years, the Brazilian exports in the United States increased from about 1.776 million metric tons in 2021, to around 3.37 million metric tons in 2025. Brazil expanded its role precisely when U.S. buyers needed a stable alternative after the disruption of Russian and Ukrainian supply.

Alternative supplies cannot readily replace Brazil. Ukraine remains affected by war-related disruption. Russia presents sanctions and geopolitical constraints. China

consumes most of its own productions.

Other supplies cannot match Brazil's combination of quantity, consistency, quality, logistics, and price. A 25 percent tariff would therefore create the highest driven cost shock for the U.S. industry.

At the current peak import price of $515 per metric ton, the proposed duty would add about $128 per metric ton before freight, freelancing, working capital margins, and pass-flow effects. That cost would fall on U.S. steel makers, foundries, manufacturers, downstream users, and finally the multi-consumer.

The United States has already recognized this supply chain sensitivity. In the tariff action under IEEPA, the United States imposes a 40 percent duty on certain Brazilian products, both excluded pig iron.

So, the same industrial facts justify as exclusion here too. Brazilian pig iron is also produced through a distinctive biomass-based root using charcoal from planted forest

rather than fossil coke.

This evidence distinguishes steel farm members from activities associated with urban deforestation and supports a target environment-linked approach.

For these reasons, a 25 percent duty on Brazilian pig iron would not help with the burdens of deforestation. It will only burden U.S. companies, increase costs for U.S. producers, and penalize a reliable supplier of a creative area of iron.

For all these explained SINDIFER respectfully asks USTR to exclude Brazilian pig iron classified under tariff code 7201.100 from any final action.

I thank you and I am happy to answer to your questions. Thank you.

MS. PASTER: Thank you. Mr. Farris, you have the floor.

MR. FARRIS: Good afternoon. Thank you for the opportunity to testify today. My name is Brandon Farris. I serve as the Executive

Vice President of the Steel Manufacturers Association.

SMA represents electric arc furnace steel industry, which accounts for more than 70 percent of America's steelmaking capacity. SMA strongly supports this administration's use of Section 301 and other trade enforcement tools to combat unfair trade practices and ensure that American manufacturers compete on a level playing field.

As USTR and others consider potential remedies, we urge the administration to ensure those actions remain consistent with the extraordinary success of the Section 232 by exempting critical steelmaking inputs.

We appreciate USTR's proposed exemption of inputs like iron ore, especially direct reduced grade iron ore pellets, direct reduced iron, and several ferroalloys. These inputs should remain exempt in any final action.

Today, however, I'd like to focus primarily on pig iron, which is one of the most

important inputs for EAF steel producers. Cleveland-Cliffs has argued that USTR should apply tariffs to pig iron pursuant to this investigation. Cliffs is one of two remaining integrated steel producers in the U.S. that produces pig iron. Neither company sells pig iron in the merchant market.

And Cliff's own CEO has publicly stated, we are no longer a supplier for EAFs. We're a competitor. So I'm not going to supply them with pig iron.

U.S. imports of pig iron from Brazil are not the result of unfair trade. Prior to the war in Ukraine, the largest sources of pig iron in the U.S. were Russia and Ukraine. For obvious reasons, supply from Russia immediately disappeared.

Ukraine's supply remains uncertain and insufficient. Brazilian supply simply replaced Russian and Ukrainian supply with little, if any, impact on the overall trade balance.

Pig iron from Brazil has not harmed any

player in the American steel industry. Cliffs has not lost a single dollar in sales because of Brazilian pig iron because they do not sell it to other U.S. producers, nor do they have the casting capabilities if they wanted to sell it.

Cliffs has touted the imposition of tariffs on pig iron as giving their company a raw material advantage over other domestic producers. Their request is a transparent attempt to kneecap its domestic competitors, not strengthen American steel industrial supply chains.

Finally, imposing tariffs on pig iron or any other steelmaking input that cannot be sourced domestically would work at cross-purposes with the Section 232 measures. The Section 232 program was developed to support revitalization of the American steel industry, most of which is EAF steel production.

Pig iron and other steelmaking inputs were deliberately excluded from the scope of the Section 232 measures to avoid unnecessary

disruption of supply of inputs that cannot be sourced domestically.

You just heard about a project that could be an additional important source of raw material for American DRI and HBI producers. But it will not increase domestic supply of iron metallics. Even when production comes online, significant logistical, qualification, and transportation hurdles will prevent these facilities from fully replacing imported pellet supply at the commercial scale that we need.

Today's manufacturing decisions cannot be based on tomorrow's possibilities. Applying tariffs to raw materials that have no commercially available domestic substitute would penalize the very companies that have invested tens of billions of dollars in American manufacturing because of this administration's strong trade policies.

The steel industry is experiencing a historic renaissance. We're investing. We're hiring. We're expanding. We're producing more

American steel than we have in years, and we want that momentum to continue.

SMA strongly supports aggressive enforcement against unfair trade practices, and we remain committed to building complete domestic supply chains. To ensure that continues, we respectfully urge USTR and others to exempt pig iron and other critical steelmaking inputs from any final action resulting from this investigation. Thank you for your time today.

MS. PASTER: Thank you, Mr. Farris.

Next, we have Mr. Parente.

MR. PARENTE: Good afternoon, Madam Chair and members of this Panel. My name is Wagner Parente, and I'm appearing on behalf of ABIMAQ, the Brazilian Machinery Builders' Association, which represents Brazil's machinery and equipment manufacturing industry, a sector that generated 297 billion reais in net revenue in 2025, employed more than 418,000 workers, and exported nearly 14 billion dollars worldwide.

ABIMAQ respectfully requests that the products, parts, components, and industrial inputs represented by our sector be excluded from the proposed action.

My submission rests on three propositions. First, there is no Brazilian import surge that additional duties could properly address. Second, these products are not readily substitutable. Third, the proposed tariffs would fall not upon foreign competitors but upon American companies, American investment, and the strategic position of the United States itself.

As the first proposition, the data reflects stable and complementary trade rather than import pressure. U.S. imports from Brazil in the category analyzed by ABIMAQ totaled near one billion dollars in 2025, down from roughly 1.1 billion the preceding year.

Total U.S. imports in these categories likewise declined, and Brazil's share remained below one percent. There is no surge, no

imbalance, and no displacement of domestic U.S. production that additional duties could reasonably correct.

As the second proposition, machinery and equipment are not consumer good but productive assets designed, certified, and customized for specific applications across manufacturing, agriculture, infrastructure, energy, transportation, and mining.

Their sourcing depends upon long-established relationships and exacting technical requirements. And in several categories, Brazil ranks among the largest sources of U.S. supply.

Substitution cannot occur quickly. Alternative suppliers require lengthy qualification, validation, certification, and operational adjustment. Duties would eliminate a trusted sourcing channel without establishing any viable alternative in its place.

As to the third proposition, which lies at the heart of this request, the proposed tariffs would penalize the very companies that

U.S. policy seeks to strengthen. Census Bureau related-party data shows that 82 percent of imports from Brazil machineries occurs between U.S. parent companies and their Brazilian affiliates.

This burden would therefore fall not upon foreign exporters but upon U.S.-owned companies that built regional production networks to support American operation and workers, reaching U.S. consumers has a higher price.

Because these are capital goods, higher import cost would, also, raise the cost of investment itself in manufacturing, infrastructure, energy, and agriculture. The action would, moreover, advantage the very competitor it should seek to contain.

In our category, U.S. imports from China are at least 15 times greater than those from Brazil. Raising the cost of U.S.-Brazil trades would neither discipline the competitor nor strengthen American production. It would

weaken a trusted hemispheric relationship and create room for China to expand within the U.S. market.

For these reasons, ABIMAQ respectfully requests the full exclusion of our sector products from the proposed action. Exclusion would protect American manufacturers, investors, and workers, prevent windfall to third-country suppliers, and preserve the integrated supply chain that benefits both our countries. I thank you for your time and for your attention.

MS. PASTER: Thank you, Mr. Parente.

With that, we'll move to questions, and I'll turn it over to my colleague in the Department of Labor.

MR. HICKS: Good afternoon once again. I'm Randall Hicks, Department of Labor. This is a question for all of the panelists collectively.

Ms. Capeloto, we'll begin with you, please. Can you please describe how imposing tariffs on the products you named may affect

consumers, producers, and investment in the United States?

MS. CAPELOTO: Sure. Thank you for that question. I mean, in terms of smelter-grade aluminum from Brazil, you know, as I noted in my testimony, Century does purchase from domestic sources as much as possible, but they're just -- domestic sources are not readily available, right?

So, Brazil is one of the largest sources of smelter-grade aluminum, so if tariffs were imposed on that, I mean, it would constrain Century's access and, you know, ultimately harm its production of aluminum in the United States.

MR. BROKING: Thank you, Tessa.

From a DR-grade pellet production perspective, you know, a few things that we should talk about here. First of all, when we think about how the tariffs will impact DR-grade pellet imports into this country and impact my business or our business in particular, consumers and producers effectively will not be

impacted at all.

We can provide a competitive product to electric arc furnace steel supply chains on a consistent basis and in fact we'll be producing the highest-quality DR-grade pellets in the world. So, we expect them to benefit from our product.

In terms of investment, critical to note that these tariffs will do two things. First of all, they will secure Mesabi Metallics and its two-and-a-half-billion-dollar investment in the approximately 350 high-paying jobs into the future.

As we ramp up, imagine you're selling into a market where there's a monopoly, and they control more than 50 percent, where Brazilian producers control more than 50 percent of the global supply of DR-grade pellets.

We expect that they're going to react harshly to our entrance into the market while we're ramping up and while we're fragile. Once we're ramped up, we have no issues competing and

expect to compete head to head.

In terms of investment, this lays the groundwork for incremental investment in iron ore, and specifically on the iron range in Minnesota where we've been mining for more than 100 years and there's still over 40 billion tons of high-grade resources available for beneficiation.

So, across all fronts, we expect this to be positive for producers, consumers, and incremental investment into this country in the future.

MR. FIGUEIREDO: That's a good question. And I'd say that from our side in the Brazilian pig iron sector, as I said before, there is no proper replacement for our product, you know, neither in the U.S. or abroad.

So, for that reason, there is no alternative for United States. The U.S. companies, if apply the 25 percent tariff, would pay more for by the availability in the market, which is Brazil.

So, with these situations, there is a logical reaction. The cost will be increased. Some return investments will not replace the Brazilian pig iron. That is -- it's not easy. As you heard, it's not easy to replenish such an industry in the U.S. territory in the short term. And this will affect directly the U.S. steel companies' competitiveness.

So, this will reach the U.S. consumers, as you've questioned. In terms of consumers, I'd say that the main involvement for producing steel here in the United States will be 25 percent more expensive. So, this will turn the steel-based products more expensive as well, like simple cars, machineries, and other products, other products that are produced here in the United States.

So, you not only will lose competitiveness in terms of domestic product, but think about that you will lose competitiveness abroad, as well. So I'd say that it's not a good deal for the U.S. steel

sector to pay more for a product that is -- it's been imported at a just price and far more reliable supplier. I would say that. Thank you.

MR. FARRIS: So, we've mentioned several metallics, but just take pig iron, for instance. So, looking at our steel industry, the nexus steel industry that we have, right now, we're at around 37 billion, either the investments that have gone through or announced investments, including, one of our members just made the largest investment in West Virginia history.

We are investing historic sums because of the certainty that the 232 tariffs have provided. And if there was a tariff, additional tariff, on pig iron, what you're doing is you're raising a raw material cost on 70-plus percent of steelmakers with no domestic sources.

There's not going to be anyone who testifies before you today that says tomorrow we can sell pig iron into the domestic steel

industry. So, if you were to put this tariff on pig iron, you're going to raise tariffs. You're going to raise costs on the domestic steel industry, which has been revitalized by this administration's trade policies.

MR. PARENTE: Thank you for the question. And I will reinforce one argument that I raised minutes ago. But we need to state that it's very hard to replace the supply chain that has been building during many years, and pig iron is a trade -- it's an intergood trade that would harm American companies.

We are talking about 409 product lines. This is the scope of our submission here. And we divide the submission into six categories. Components for capital goods industry. This category, for example, intergood trade share and these good exceeds 86 percent.

The second good, machinery for logistics, for example, is almost 96 percent. It's almost interfering with commerce. So, again, if you impose this tariff, the cost will

be support by American companies.

The second aspect of this answer that I'm going to raise is how hard it is to replace a product that requires certain certified requirements that's not easy to get. So, if it's hard to substitute a shoe, a consumer good, imagine how it is to substitute a pipeline for a drill for oil. It's very hard to do this. So it's save time.

And I consider the kind of commerce we have between countries. I don't think it is what this administration wants with this action.

MR. BUTLER: Mr. Broking, a follow-up question for you. I understand Mesabi is currently ramping up production. At what point or how long do you think it will be before we have enough casting production to replace imports from Brazil?

MR. BROKING: Yeah, thank you for the question. It's a very, very good question. So, as I stated, we're currently in the process of mining. So, we're working around the clock

currently mining.

We expect to begin our processing operations in August and begin shipping sustainably to our customers in the third quarter and certainly sustainably in the fourth quarter.

In terms of the ramp-up, you're going to get lots of different opinions. But as somebody who's been doing this for 30 years, you know, we feel confident that we will be able to sustainably supply all of the requisite volume required for DR-grade pellets in 2027.

MS. PASTER: Thanks very much to all the panelists. That will conclude Panel 12, and Panel 13 can go ahead and get seated. We'll give some time for everyone to get settled and then start again.

(Whereupon, the above-entitled matter went off the record at 3:20 p.m. and resumed at 3:25 p.m.)

MS. THOMPSON: Hello, everyone. Please be seated, and then we will begin.

MR. BUTLER: Okay. Thank you. To start with Panel 13, Mr. Barry, you have the floor.

MR. BARRY: Good afternoon. My name is Peter Barry, and I'm the President and CEO of WEG Electric Corporation. Thank you for this opportunity to testify.

WEG employs more than 2,000 U.S. workers and is the second-largest supplier of industrial electric motors in the United States. We operate nine manufacturing facilities across six states and maintain seven R&D teams.

Our products power critical sectors, from manufacturing and energy to agribusiness and mining, and are essential to AI infrastructure and grid stability. Last year, the Commerce Department recognized WEG for supporting U.S. economic growth and job creation.

Let me be clear. WEG believes the U.S.-Brazil trade relationship is mutually beneficial. The conduct under investigation is

outside our business, and we take no position on it. We are here to ask that any remedies USTR adopts protect rather than harm American workers, competitiveness, and national security.

To that end, if tariffs or other remedies are warranted, WEG respectfully requests that the imports of high-efficiency electric motors and generators from Brazil be excluded. The specific HTSUS codes are in our written comments.

Let me explain why the restrictions on these products would hurt the U.S. economy and our national security. First, tariffs would raise the cost for U.S. companies because domestic demand far exceeds domestic capacity. The motors and generators WEG produces in Brazil complement, they do not replace what we manufacture here. Most are highly engineered and customized.

Relocating production would require new facilities, new equipment, supplier requalification, and years of lead time.

Restricting these imports would burden U.S. manufacturers, raise costs, and push buyers toward Chinese suppliers, embedding Chinese equipment in critical U.S. infrastructure and undermining the administration's goal of technical leadership.

Second, these imports are critical to America's AI infrastructure. Electric motors drive the cooling systems that keep our servers and systems that power AI running. Generators provide backup and prime power for AI loads.

The United States produces less than 25 percent of the generators it consumes, and domestic supply won't meet surging demand for years. Imports from Brazil help American developers meet their construction timelines and keep AI investments onshore.

Third, our imports support WEG's American transformer business. The United States faces a severe transformer shortage. We produce only about 30 percent of what we need, and delivery times have stretched out to two

years.

WEG has invested heavily to expand U.S. transformer production. Tariffs on motors and generators from Brazil would impair the cash flow that sustains those investments, leaving the grid vulnerable and risking outages that affect millions of Americans.

Fourth and significantly, not a single domestic producer has filed comments in opposition. And indeed, the opposite is true. The National Electrical Manufacturers Association, the principal U.S. trade association representing electrical equipment manufacturers, has submitted a letter to the record expressly urging USTR to grant exclusions for these products.

In sum, WEG products, whether made here or imported from Brazil, strengthen American manufacturing, secure our energy grid, and support our national security. We respectfully request that USTR exclude high-efficient electric motors and generators from any tariffs

or remedies.

Thank you for your consideration, and I welcome questions.

MR. BUTLER: Thank you.

Mr. Barron?

MR. BARRON: Good afternoon, Chair and members of the Section 301 Committee. My name is Matt Barron, and I am Senior Vice President, Chief Administrative and Legal Officer of Sylvamo. Thank you for the opportunity to testify.

Sylvamo's ask today is simple. We respectfully urge the Committee to add three uncoated freesheet paper codes, HTS 4802.55, 56, and 57, to the product coverage annex of the proposed Section 301 action on Brazil. Doing so protects American jobs, American capital investments, and the American-owned supply chain, and it advances the administration's Western Hemisphere trade strategy.

Sylvamo is headquartered in Memphis, Tennessee. We are the largest producer of

uncoated freesheet paper in North America. And for reference, what I'm holding and what hopefully most of you have in front of you is uncoated freesheet.

We employ approximately 800 Americans at our mills in South Carolina and New York, and we support roughly 5,000 additional jobs in the rural communities around those facilities. Our American brands like Hammermill are on the shelves of every major office and retail customer in this country, and we are the exclusive global supplier of HP papers.

While other companies closed or converted nearly 20 American paper mills since 2020, Sylvamo is investing in America. In 2025, we announced 145 million in U.S. capital investments to deliver 60,000 tons of new capacity.

We've partnered with Arkansas-based The Price Companies, who is investing another 70 million to modernize our South Carolina mill's woodyard. Together, that is more than 200

million flowing into the American manufacturing economy. On top of that, we spend roughly $50 million every year to maintain our U.S. mills.

Sylvamo is the only U.S.-headquartered company importing uncoated freesheet from our own mills in Brazil. Every other importer serving the American market is foreign-owned, based in China, Indonesia, the UAE, South Korea, and Thailand, to name a few.

A 25 percent tariff on our Brazilian production does not level the playing field. It tilts the field towards those foreign-owned competitors, the same Asian producers USTR is actively investigating parallel Section 301 excess-capacity cases.

Under the administration's current tariff framework, we made a strategic decision earlier this year to bring product into the U.S. from our Brazilian mills to support our American customers, American jobs, and the American administration's Western Hemisphere strategy.

We did this because we did not have

enough U.S. production to meet the demand of our U.S. customers. A 25 percent tariff would reverse this strategy and jeopardize an estimated 20 million-plus in earnings per year flowing back to our American operations.

Our paper meets each of the three criteria the June 1 Notice of Determination uses to add products to the annex. First, uncoated freesheet is a necessary raw material that the U.S. market simply does not produce in sufficient quantity. American producers meet only 80 to 85 percent of demand. The remaining 15 to 20 percent must be imported, and that gap is structural, not temporary.

Due to digital substitution, uncoated freesheet demand has been decreasing since the early 2000s, yet imports have continued to supply about 15 to 20 percent of demand. As demand has decreased, high-cost U.S. production has been shut down and low-cost production converted to other product lines.

Low-cost imports, some of which have

been supported by foreign subsidies, have maintained their market position. No company in the U.S., Sylvamo included, is going to commit three to four million dollars and take the six years necessary to build a new mill in a shrinking uncoated freesheet market. The economics do not support it.

That is why the last new U.S. uncoated freesheet mill was built in the 1980s and why no new domestic capacity is planned beyond Sylvamo's announced expansion.

As the U.S. market continues to contract, Sylvamo expects to serve a greater share of demand from our American mills and to rely less on imports from Brazil. In the meantime, the question is whether the 15 to 20 percent supply gap gets filled by an American-owned company importing from its own Brazil mills or by foreign-owned producers in Asia and Europe.

Second, additional tariffs would cause serious economic dislocations. Over one-third

of Sylvamo's operating profit originates in Brazil and is repatriated to the U.S., funding the 200 million in American capital investments I earlier described and strengthening the rural communities that depend on them.

Additional tariffs would, also, dislocate our American customers. Major U.S. manufacturers, converters, and printers rely on Sylvamo paper to make envelops, commercial print, direct mail, and other finished goods at facilities across the U.S. National retailers depend on our cut size paper to stock their store shelves and serve customers nationwide.

Disrupting that supply does not bring production home. It pushes it offshore, shifting volume to imported finished goods and displacing American jobs.

Importantly, our paper is also the substrate for election ballots, government forms, court documents, SEC-mandated filings, and standardized tests, products our country cannot afford to put at risk.

Third, tariffs on our product would not be effective in changing Brazil's behavior. Uncoated freesheet has zero nexus to digital trade, preferential tariffs, anticorruption, intellectual property, ethanol, or deforestation.

With respect to deforestation, we own more than 250,000 acres of FSC and PEFC-certified plantation forestland and source the remaining wood required from responsibly managed forests. And eucalyptus pulp, which is made from the very same trees at the very same mills, is already on the annex. There's no basis for leaving paper off the tariff list when pulp is on it.

Sylvamo is exactly the kind of company an America First trade policy should promote: American headquartered, American workforce, American capital investment, with earnings repatriated and reinvested in U.S. mills and rural communities.

We respectfully ask the Committee to

add HTS Codes 4802.55, 56, and 57 to the annex. Thank you, and I welcome your questions.

MR. BUTLER: Thank you.

Mr. Parente?

MR. PARENTE: Good afternoon, Mr. Chair, members of this Committee. Now I'm representing Iba and replacing Mr. Barral. And Iba represents the interests of pulp, paper, and wood panel sectors in this public hearing on the Section 301 investigation.

The association represents Brazil's planted-forest industry, encompassing forest growers and manufacturers of pulp, paper, packaging, and wood-based products. Our members, 49 companies and nine state-level organizations, relies on sustainably managed planted forests rather than native forest areas, with supply chains subject to traceability, monitoring, and internationally recognized certification systems, such as FSC and PEFC.

As a result, the products covered by this submission originate from fully traceable

and independently certified supply chains and are not linked to deforestation-related risks that form the basis of this investigation.

These products are essential industrial inputs embedded throughout the U.S. economy. They are used in packaging, logistics, and food and beverage distribution, healthcare, education, publishing, consumer goods, and manufacturing supply chains and a wide range of specialty chemicals applications.

Unlike discretionary consumer products, these goods serve as intermediate inputs that support the movement, protection, labeling, and distribution of countless products used by American business and consumers every day. Their importance extends far beyond the value of imported product itself because they enable activity across multiple downstream sectors.

The trade data show a consistent pattern across the paper and paperboard products. Brazil is either among the largest suppliers, among the most price-competitive

suppliers, or both. In several products categories, Brazil ranks as the first- or second-largest source of U.S. imports, supplying between 15 and 50 of total import demand.

While alternative suppliers may exist, they generally do not offer the same combination of volume, price, reliability, and product specifications. Replacing Brazil's supply would often require sourcing simultaneous from multiple countries, accepting higher costs, or relying on suppliers that have not demonstrated the capacity to observe displaced Brazilian volumes.

A 25 percent tariff would primarily increase costs of U.S. consumers, manufacturers, distributors, and consumers. Economic research consistently finds that tariff costs are largely borne by domestic purchasers rather than foreign exporters.

Because these products are industrial inputs, additional costs would be transmitted throughout downstream supply chains of other

sectors. Moreover, transitioning to alternative suppliers is not costless. Importers would need to identify and qualify new suppliers, conduct product testing, renegotiate contracts, and adjust logistics networks.

These adjustment costs would compound the direct impact of the tariffs and create disruption extending well beyond the affected imports themselves.

The drivers of illegal deforestation are widely recognized as issues related to governance, environmental enforcement, land-use management, monitoring systems, compliance mechanisms, and property rights administration.

Imposing tariffs on downstream paper, pulp, and wood panel products would not directly influence these factors. Instead, the most likely effect would be to alter trade flow, increase costs for U.S. buyers, and redirect Brazilian exports to alternative markets.

In conclusion, and for the reasons previously mentioned, Iba respectfully requests

that the products represented by the association, including paper and paperboard products, wood panel products, pine resin and its derivatives, and other planted-forest-based products classified under Chapters 29, 38, 44, and 48 of the HTSUS be excluded from any additional tariffs adopted by this proceeding.

Finally, Iba is grateful for the opportunity to participate in this public hearing and to share the perspective of Brazilian plantation forest industry. Our association remains committed to legality, sustainability, responsible forest management, and fair trade, and stand ready to continue engaging constructively with U.S. authorities. Thank you for your attention.

MR. BUTLER: Thank you.

Mr. Figueiredo?

MR. FIGUEIREDO: Thank you, Mr. Chairman. Dear Committee, my name is Celso Figueiredo again. But now I appear on behalf of Klabin S.A., which is largest Brazilian producer

of packaging paper and industrial paper.

Klabin respectfully submits that the proposed additional duty should not apply to its products. The investigation concerns illegal deforestation. It aims to address supply chains that benefit from native forest conversion, weak enforcement, fraudulent documentation, and the laundering of illegally sourced products into global markets. The rationale does not justify penalizing companies whose supply chains are based on planted forests, certified wood, independent audits, and traceable production systems. This is the case with Klabin.

Klabin's production chain begins with pine and eucalyptus plantations in Brazil. It is not based on native forest conversion, cattle ranching, soy expansion, illegal timber extraction, or the land use dynamics identified in the USTR's Notice of Determination.

Klabin's supply chain is also independently certifiable and traceable. Its raw material comes from planted forests and

controlled woods. Its forestry and supply chain are subject to third-party audits, including several certifications. We think that a tariff on Klabin's products would therefore not address illegal deforestation. It would only penalize products with no causal connections to the conduct under investigation.

Even if the United States decides to apply a measure against Brazil, USTR should then consider the negative effects of that measure on the U.S. economy. In Klabin's case, the products for which exclusion is requested are not produced domestically in equivalent form, technical performance, or sufficient quantity, and for that reason the imports are important to U.S. downstream industries.

Therefore, Klabin requests exclusion for three product categories. First, eucalyptus short-fiber kraftliner, including Eukaliner and Eukaliner White, under tariff codes 4804.11.00 and 4804.19.00. These products are used to manufacture corrugated cardboard boxes. The

short-fiber kraftliner is not produced in the United States. U.S. converters use them to reduce basis weight, improve corrugated packaging performance, and increase efficiency.

Second, aseptic liquid packaging board, including KlaLiquid, commonly classified under tariff code 4810.92.12. This product supports shelf-stable food and beverage supply chains, including dairy, juices, and other forms of liquid food products. Domestic U.S. supply is concentrated only in fresh or non-aseptic applications.

Third, industrial paper sacks that are made from extensible sack kraft paper, including Klasack, commonly classified under tariff code 4819.30.00 and 4819.40.00. These products are used for cement, chemicals, food ingredients, fertilizers, agricultural inputs, and other dry bulk goods. Substitution would increase breakage, reduce filling efficiency, and raise costs for U.S. manufacturers.

In sum, a 25 percent duty on these

products would not advance the environmental objectives of this investigation. It would only burden U.S. commerce, increase costs for U.S. converters and manufacturers, and penalize a responsible producer with a certified, traceable, plantation-based supply chain. Therefore, Klabin respectfully asks USTR to exclude the identified products from any final action.

Thank you, and I'm happy to answer your questions.

MR. BUTLER: Thank you.

Mr. Bloom, the floor is yours.

MR. BLOOM: Good afternoon, members of the Panel. I'm Patrick Bloom. I serve as Executive Vice President of Government Relations for Cleveland-Cliffs. Thank you for the opportunity to testify.

Cleveland-Cliffs applauds President Trump's administration for leading the charge in addressing Brazil's unfair and harmful trade practices. Cleveland-Cliffs strongly supports

USTR's proposed Section 301 action, which would subject pig iron classified under three distinct HTS codes, to the proposed 25 percent tariff on products of Brazil.

The production and export of pig iron from Brazil to the United States is directly linked to illegal deforestation, which is a focus of USTR's investigation here, and forced labor, the focus of a separate pending Section 301 investigation of Brazil. Pig iron is not currently included and should not be included in the annex of exclusions from this proposed tariff. Here are the key points.

The export of pig iron from Brazil to the United States is a big business. Imported metals from Brazil totaled $5.4 billion in 2025, including $1.4 billion of pig iron. U.S. imports of pig iron from Brazil totaled 3.5 million short tons in 2025, and last year, 83 percent of Brazil's pig iron exports went to the United States. Imports of pig iron from Brazil have surged, rising from 1.8 million short tons

in 2021 to more than 3.5 million short tons in 2025.

During the period from January to April 2026, the CIF value per short ton of pig iron imports from Brazil was just $381. Application of a 25 percent tariff applied to this value would result in a total import cost of $476 per short ton, which is significantly below the $646 CIF value per short ton of Brazilian pig iron exports to the United States just a few years ago in 2022.

Approximately 30 percent of Brazil's pig iron is produced using charcoal. Brazil's pig iron exports come predominantly from independent pig iron producers that rely on a charcoal-based production method. This requires huge volumes of timber converted to charcoal in kilns. It is well established that this demand for timber has directly contributed to illegal deforestation in Brazil, especially in the Eastern Amazon.

Brazil's charcoal industry has been

credibly linked to forced labor practices involving child labor, low wages, and substandard working conditions. According to a 2022 report, since 1995, more than 2,800 people have been found working in slavery-like conditions at charcoal production sites in Brazil, with more than 2,000 of those individuals using wood from native forests.

In this case, Brazil has not only failed to stop the imports of goods made with forced labor, there are strong reasons to believe that the charcoal used to fuel its pig iron exports is also made with forced labor.

Other witnesses at this hearing will claim that pig iron from Brazil is necessary to support the American steel industry. We strongly disagree. The United States has the raw materials -- iron ore pellets, coal, abundant natural gas, and limestone -- as well as the production assets -- efficient blast furnaces and advanced direct reduction plants -- necessary to support America's very capable

steel industry.

Brazil does not possess any unique natural resources of expertise related to pig iron. The United States can produce pig iron and other metallic feedstock in sufficient volumes.

You've heard a lot about my company today, and I'd like to set the record straight. Cleveland-Cliffs is currently selling both pig iron and hot briquetted iron to multiple EAF steelmakers. We have additional volume available that has been offered to other American companies in commercial discussions at prices that are very competitive with imported pig iron.

Despite this fact, EAF steel companies continue to advocate for imported pig iron. And this, in our view, is indefensible. Cleveland-Cliffs is here today in support of USTR's proposed action, not to ask for tariff carve outs or exemptions.

Cleveland-Cliffs strongly urges USTR to

proceed with the proposed Section 301 tariffs on Brazil. We also strongly endorse stacking the Section 301 tariffs such that the 12 and a half percent Forced Labor Section 301 tariff applies in addition to the 25 percent Section 301 tariff resulting from this investigation.

We stand with the U.S. Government and respectfully urge USTR to stay the course with these Section 301 actions. Thank you.

MR. BUTLER: Thank you.

Mr. Schneider?

MR. SCHNEIDER: Good afternoon, members of the Section 301 Committee. My name is Barry Schneider. I'm the President and Chief Operating Officer of Steel Dynamics, one of the largest steel producers in the United States, and I also serve as Chairman of the Steel Manufacturers Association.

Let me begin by saying that Steel Dynamics strongly supports the administration's efforts to confront unfair foreign trade practices. President Trump has made restoring

American manufacturing a national priority, and the steel industry has benefited from policies that recognize steel as the foundation of our industrial base and our national security.

These policies are working. American steel companies have invested billions of dollars in new production capacity. At Steel Dynamics alone, we have invested well over $2 billion in recent years, including our state-of-the-art flat roll mill in Sinton, Texas. We employ more than 14,000 Americans, and we continue to invest because we believe in the future of American manufacturing.

That is why we're here today. The administration's proposed Section 301 tariffs are intended to strengthen American industry, not weaken it. Unfortunately, that is exactly what will happen unless one important adjustment is made to exempt pig iron from any tariffs imposed in the Section 301 investigations.

Pig iron is an essential raw material used by electric arc furnace, or EAF, steel

producers like Steel Dynamics, which account for more than seven percent of U.S. steel production today.

Without pig iron, we cannot produce the advanced steel products used in autos, construction, energy infrastructure, defense applications, heavy equipment, rail, and countless other manufacturing sectors.

Pig iron is not available in the merchant market from domestic sources in the United States. If Steel Dynamics could buy pig iron from American suppliers, we would. But that simply is not possible.

The two remaining blast furnace producers in the United States manufacture pig iron primarily for their own internal use. They either cannot or will not supply EAF producers. Nor are there any substitutes for pig iron. In particular, direct reduced iron and hot briquetted iron, which you will hear referred to as DRI and HBI, cannot replace pig iron in the EAF production process. Their different

chemical properties prevent them from performing the critical functions that pig iron performs and that are necessary for EAF operations.

Pig iron plays a critical and irreplaceable role in EAF steelmaking, and every high-performing EAF mill still depends upon pig iron. As a result, EAF steel producers in the United States have no choice but to import pig iron.

Brazil supplies more than 60 percent of America's imported pig iron, and other countries cannot replace those volumes. Russian supplies have disappeared because of the sanctions imposed on them. Ukraine's exports also declined significantly following Russia's invasion.

Canada and South Africa only supply limited quantities to the United States. And India is an inconsistent supplier. In any event, India and South Africa themselves face potential Section 301 tariffs.

Imposing tariffs on pig iron imports

will not create new domestic production. It will simply raise costs for American manufacturers. And I can tell you in no uncertain terms it will raise Steel Dynamics' costs significantly.

Significantly higher input cost resulting from a tariff on pig iron will weaken our competitiveness, limit future investment, and make American manufacturing less resilient. That result would be directly contrary to the administration's objective of strengthening American steelmaking.

Fortunately, USTR anticipated exactly this type of situation. The proposed Section 301 action specifically recognized that exemptions may be appropriate where tariffs would restrict supplies of critical raw materials, create economy-wide disruptions, or apply to products that cannot be produced domestically in sufficient quantities or sourced elsewhere. Pig iron satisfies every one of those criteria.

As it has done with other tariff actions in the past, we respectfully urge USTR to exempt pig iron from any final Section 301 tariffs. Doing so will strengthen, not weaken, the American steel industry, support continued domestic investment, and advance the administration's goal of rebuilding America's manufacturing base.

Thank you for your consideration, and I look forward to your questions.

MR. BUTLER: Thank you. We'll turn to questions now. First question is from Ms. Ghadiali.

MS. GHADIALI: Hi. I'm Aysha Ghadiali from the U.S. Department of Agriculture, and my question is for Iba, Brazilian Tree Industry.

What are the potential economic impacts of the proposed 25 percent tariff on Brazilian imports for your company and your U.S. partners? And would the proposed list of pulp, paper, paperboard, and wood-based products for exclusion in the annex address the majority of

your company's concerns?

MR. PARENTE: Thank you for your question. First of all, we must clarify that we are an association, we are a union of producers, so we are representing the industry of plant and forest products association. And, of course, we have many positions here inside of our organization. And we can use some examples, for example, the position 4819.300, sacks and bags, we are the third-largest supplier. Brazil is the third-largest supplier of this product in the United States in 2025 by both value and volume, shipping 18.8 million in U.S. dollars and representing almost 10 percent of import volume.

We have the lowest price among the top five sources at 1.85 kilos. It is significantly below Canada, the second most competitive price. They charge 2.53. The third one would be Mexico, Vietnam, and Indonesia.

So -- and we can give more examples. For example, toilet facial tissues, we are

ranked at sixth position, both in value and volume too. The five top suppliers would be Indonesia, and the price is higher to Mexico, the price is higher to Canada, Vietnam, Turkey.

So -- and this is a pattern that repeats in many other products, probably the cost would be prohibitive to U.S. consumers. And, of course, it's not only consumer goods, for industrial goods too, because there are many applications that would be a burden over the industry, for example, applications to package. It is very high cost to companies, and probably their price would be higher for industrial goods too.

MS. SULLIVAN: Good afternoon. This is Sarah Sullivan from the Department of the Treasury. This question is for all the remaining panelists.

Can you please describe or elaborate on how imposing tariffs on the products you name may affect customers, producers, and investment in the United States?

And perhaps we'll begin with Mr. Barry. Thank you.

MR. BARRY: Great. Thank you. And just to be clear, WEG today imports more than 200 HTS codes from Brazil. Our request was for around 15. So we've kind of gone through this process of, what can we produce here in the United States, maybe in other countries, where are things available?

So we were very intentional on items we think that are really close to national security and what's good for U.S. manufacturing. WEG continues to invest in the U.S. We've been investing even before tariffs, primarily around our transformer business and generators, which are in very high demand related to the AI data centers.

So, in terms of our customers, the tariffs on Brazilian products are creating higher input costs. I think the alternative source of supply for a lot of these products that we included in our list is primarily China,

which I don't think is desirable. Our customers don't necessarily want the products from there, unless that's the only place that they can get them, and then they will, because the projects will definitely go on.

MR. BARRON: A 25 percent tariff on uncoated freesheet from Brazil makes it uneconomical to bring that product up from Brazil to the United States. But the supply gap in the U.S. is real. There's just not enough supply to meet the current demand in the U.S.

So, instead of an opportunity for that demand to be supplied by a U.S. company in Brazil that's using the profits that are earned to reinvest in the communities and our mills in the U.S., unfortunately, that supply needs to be filled by someone, and filled by Asian producers primarily.

MR. PARENTE: Yeah, and just to reinforce these arguments, multiple U.S. importers and converters and factors and groups and industrials associations have independently

expressed that Brazil forest-based products provide unique technical factors to complement the mass production and support American manufacturing competitiveness by ensuring diversified, cheap, operational flexibility, and reliable access to high-quality, reliable raw materials.

Many of them, the American Forest & Paper Association, for example, Tetra Pak, Dentex (phonetic), and many others, they are in our manifestation (phonetic) so you can check. Thank you.

MR. FIGUEIREDO: So, speaking on Klabin's behalf, we talk about specific products here. We respond to a niche market. The products are very specific and for that reason there is no short-term alternative supplier.

For example, for Eukaliner, it's Klabin's (inaudible). So it is the paper that is applied to the corrugated cardboard boxes. If the USTR or the U.S. Government applies a 25 percent tariff on these products, it is likely

that the boxes that are used by Amazon, for example, will become more expensive for the U.S. consumer. This is not the regular corrugated cardboard box; we are talking about premium corrugated cardboard boxes.

So, when we talk about liquid paper products, that is those papers that serves as packaging for foods or some sort of liquid foods, dairy products and juices, et cetera. We're talking about the (unintelligible). It's not a regular one. It's a more specific one.

So this kind of paper makes the food has more useful time of validity so the product has a longer period of usage. There is no alternative supplier to the Brazilian paper nowadays. The only alternative suppliers would be Finland and Sweden, but they have supply contracts for their volume in place. So the consumers that consume juices and milk and et cetera will be paying for a more expensive package.

And when we talk about industrial

sacks, there is Europe as an alternative supply as well. But, again, we're talking about a specific kind of paper for industrial sacks that are elastic. They're extensible. It's not the regular one, which is not extensible.

For that reason, we believe that not imposing such a surcharge on these products would prevent from the American consumers to be injured by most costly products.

For last here and I finish my phrase, my sentencing: we respond to less than five percent of those products when you evaluate the whole market for industrial sacks or even the corrugated cardboard boxes. So it's a very small percentage of the market, but this percentage will be affected because there is no alternative supplier in the United States or even abroad. Thank you.

MR. BLOOM: So, plainly speaking, the imposition of tariffs of at least 25 percent under Section 301 on Brazilian pig iron imports would mean more U.S. manufacturing jobs and a

stronger, more resilient American steel industry.

And let me say just a little bit more about our ability -- meaning Cleveland-Cliff's ability, as well as the market more broadly -- to support domestic steelmakers who rely on merchant pig iron.

Cleveland-Cliffs, starting in 2018, invested one billion dollars in a state-of-the art direct reduction plant in Toledo, Ohio, that's capable of producing 1.9 million tons of direct-reduced iron, also known as hot briquetted iron, annually. The vast majority of that product is available for sale. Because we're an integrated steel producer, we use that primarily, although not exclusively, as a substitute for scrap in our basic oxygen furnaces.

But the highest and best use of that product -- and, actually, the whole reason the plant was built in the first place -- was to serve the domestic electric arc furnace segment

of the steel market. And so, if sufficient demand, domestic demand, existed, we would be glad to sell nearly all of that product to other EAF steelmakers.

We also have an idle blast furnace at Dearborn Works in Dearborn, Michigan. It was idled approximately a year ago. That blast furnace has the capacity to produce upwards of two million tons of iron annually. And, yes, it would require an investment to bring it back, and also an investment in a pig iron casting machine, or a pigger, as they're sometimes referred to. But, again, if sufficient demand existed domestically, that would be an investment that Cleveland-Cliffs would be more than happy to make.

And then, lastly, certain witnesses today have indicated their belief that DRI or HBI is a poor substitute for imported pig iron. Apparently, other market participants disagree. And there's a few examples of major investments where companies have put their money where their

mouth is at in terms of their reliance on and investment in DR plants.

Nucor has a state-of-the-art facility in Convent, Louisiana. ArcelorMittal has a direct reduction plant in Corpus Christi, Texas. Nippon U.S. Steel recently announced intent to construct a direct reduction plant in Arkansas. Hyundai Steel, as part of their investment commitment in Louisiana, they intend to construct a direct reduction plant as well.

So the message I'd leave you with is that the market signals and the tariff policy nudging, if you will, of this administration is working exactly as intended, and we have yet further opportunity to increase domestic manufacturing of pig iron and of metallics to better serve the domestic steel markets. Thank you.

MR. SCHNEIDER: From Steel Dynamics' position, in addition to being a large steelmaker, we are the largest recycling company in North America, both ferrous and non-ferrous.

So, any time we look at the materials going into our furnaces, we do it on a value and use cost basis.

So the American mini-mill revolution that started here in America, that technology has allowed us to build smaller plants that are world class in cost control and quality, and we're able to build those plants across America, not limited to the Great Lakes/Rust Belt region.

So many of those stretch to the South, Southeast, down into Texas, where much of America's manufacturing has moved over the last 30 years. So, as we look at our scrap mixes and our metallic charges that we're going to put into our furnaces, we value everything at what its use.

SDI does not currently use, and has never used, DRI. We have used HBI sparingly when the pig iron markets were disrupted with the Ukraine-Russian war. And we did that with some cost to our production. When you put HBI in a furnace it attacks your refractories and it

will consume more electricity. The more electricity you consume, the more your costs are. In America today, we don't have extra electricity.

So, when you put pig iron in, it's fuel that allows us to get chemical energy out of the furnace. And when that pig iron is sustainably produced, like much of what we buy from Brazil, from sustainably harvested forestry, those products have a very low carbon footprint. Steel Dynamics' products are the lowest carbon-containing products in in the world. This technology is the future, and having metallics to support that are very important to us.

So, as we look at iron -- and we are also an iron producer -- we produce DRI, we immediately smelt it into liquid pig iron to put it into our arc furnaces. So, we've explored three different groundbreaking technologies over the last 31 years, some that have cost us quite a bit of money. We actually own a mine in Minnesota that we bought from Cleveland-Cliffs

years ago. We abandoned the project when we couldn't legally get a permit. So we have a very large park in Minnesota now; 6,000 acres.

It's a difficult thing to make iron. We continue to pursue it. It is our Achilles' heel, in some ways. And the way our industry in America has been able to be strong and grow is by having access to pig iron in the world markets. That access has changed because of geopolitical context in Europe, and certain uncertainties in the MENA regions. So Brazil is our current supplier of choice and a great product for us. And we continue to ask that some exemption be made to cover what our needs are in the mini-mill industry. Thank you.

MS. SULLIVAN: Thank you for your responses.

MR. BUTLER: Thank you to this panel. We appreciate your testimony. We can take a quick break and come back with Panel 14.

(Whereupon, the above-entitled matter went off the record at 4:12 p.m. and resumed at

4:15 p.m.)

MS. THOMPSON: Good afternoon, please be seated and we will begin.

MS. PASTER: Thank you and welcome back everyone for the last panel of the day, we're looking forward to your testimony.

As very quick reminder, everyone's limited to five minutes and we'll -- after everyone concludes, we'll have some time for final questions before letting everyone go after a very long day.

Okay, so with that, we'll start with Mr. Cruz.

MR. CRUZ: Good afternoon, members of the Committee. My name is Fabio Cruz, and I appreciate the opportunity to appear before you today on behalf of the Brazilian Natural Stone Association, Centrorochas.

For more than 20 years, I've worked closely with American distributors, fabricators, builders, designers, and importers. My remarks today are based on that experience.

We recognize and respect the purpose of this investigation. The United States has every right to defend its economic interests.

Our request today is straightforward. We respectfully ask that the Brazilian natural stone products identified in our written submission receive a sector-specific exclusion from the proposed measures.

These products fall outside the scope of the issues under review and are part of a supply chain that has supported American jobs, American investment, and American businesses for decades.

Let me offer one example. A few days ago, I spoke with the owner of Pacific Shore Stones, a U.S. distributor serving customers across several states.

He shared that, in 2025 alone, his company purchased approximately $22 million of natural stones for its warehouses in the United States. Roughly 80 percent of those purchases came from Brazil.

Once those materials arrive in the United States, almost all of the remaining economic value is created here.

American companies transport them. American companies warehouse them. American workers fabricate them. American contractors install them. American builders and designers deliver the final product to homeowners and commercial projects across the country.

Pacific Shore is just one example, but it reflects a much broader reality.

Centrorochas represents more than 200 Brazilian natural stone companies that supply to the U.S. market. Together, our member companies support a broad network of American businesses, from large national distributors to independent fabricators serving local communities across the country.

In the relevant customs category alone, nearly 10,000 American companies imported natural stone products during the past 12 months.

Across the United States, distributors, fabricators, builders, remodelers, and suppliers have spent years building successful businesses around the reliable availability of Brazilian natural stone.

Large American companies import thousands of containers from Brazil every year to serve the homebuilding and remodeling markets.

That is why the proposed tariffs would affect far more than Brazilian exporters. They would increase costs for American businesses that have already invested in this supply chain, and ultimately for American consumers.

There's one additional point I would like to leave with the Committee.

The products covered by our request generally do not compete directly with equivalent domestic production.

Most are semi-finished slabs that American companies transform into finished products.

Many also possess geological, aesthetic, and technical characteristics that are not readily available from domestic or alternative sources at comparable scale and consistency.

For those reasons, we respectfully believe these products warrant separate consideration.

Brazil has been a reliable supplier to the United States for decades. Together, our industries have built a stable, integrated, and resilient supply chain that benefits businesses in both countries.

Members of the Committee, our request is a narrow one. We respectfully believe the products covered by our request fall outside the scope of this investigation and that granting a sector-specific exclusion would protect American investment, support American businesses, preserve supply chain stability, and avoid unnecessary costs for American consumers.

Thank you for your time, I'll be

pleased to answer any questions.

MS. PASTER: Thank you, Mr. Cruz.

Mr. Hieb, you have the floor.

MR. HIEB: Hello, and yes, it's nice to be part of the last panel.

My name is Jim Hieb and I'm the CEO for the Natural Stone Institute.

Thank you for this opportunity to appear before you alongside some of my peers in the natural stone industry.

The NSI is a nonprofit trade association with roots dating back to the late 1880s and is now recognized as one of the industry's most comprehensive and enduring associations for natural stone professionals.

Our association publishes industry standards for natural stone and has members in over 50 countries.

However, it's important to note that 85 percent of our 2,300 members are in the United States and the association is also based in the United States.

The NSI supports fair, free, and open trade.

We also recognize that the use of tariffs may be necessary from time to time to address unfair trade practices which level the playing field.

However, we do not believe that the current situation with Brazil warrants their use.

Here are some quick statistics and facts for you.

Eighty-five percent of the natural stone consumed in the United States is, in fact, imported.

And the most popular natural stone countertop materials used in residential construction are geologically present only in Brazil.

The U.S. domestic trade stone industry is strong, especially in commercial and hardscape construction and every time I come to Washington, D.C. I see evidence of a strong

domestic stone industry.

However, their color and color patterns do not make them suitable for use in the residential countertop construction.

In short, the domestic stone production cannot replace Brazilian stone for countertops.

Tariffs will impact U.S.-based jobs in several natural stone sectors, including 20,000-plus natural stone fabrication and installation companies, over 500-plus stone distributors who import Brazilian stone, and when we add up all those jobs, it far exceeds 200,000 jobs.

As you reflect on the housing affordability, these tariffs will put additional strain on the housing industry by negatively impacting the base price for homes and the need for affordable housing that is so important in our nation.

For these reasons and others, we oppose the inclusion of natural stones from Brazil on the basis of that the U.S. monumental stone imports from Brazil are unique materials that

are otherwise unavailable from other sources, both within the United States and outside the country of Brazil.

And I want to thank you for your consideration and look forward to the question time period.

MS. PASTER: Thank you.

And Ms. Edmond, you have the floor.

MS. EDMONDS: Thank you.

My name is Janelle Edmonds, I am the Chief Supply Chain Officer of Wisenbaker Builder Services.

Wisenbaker Builder Services fabricates, supplies, and installs countertops in new home construction.

Natural stone, primarily granite, is one of several surface products that can be utilized in household countertops, and our product selections reflect the combination of builder and home buyer preferences and the need to keep materials at affordable prices for the homeowner.

Wisenbaker employs approximately 1,100 U.S. workers who support our turnkey builder services.

We supply reliable products at price ranges that fit each construction project, as this is essential to keeping our workers employed and to building affordable homes.

We are unique in our market because we purchase a substantial amount of countertop material, but also fabricate every foot to be installed in a new home.

In 2025, my company fabricated nearly 523,000 square feet of natural stone, of which 97 percent was imported from Brazil.

Every foot of imported stone, we add $16 worth of domestic labor and materials in the fabrication process. This is roughly 3.4 times the value of the raw material.

Our import of granite slabs falls under HTS Code 6802.93, category that covers slabs that have been ground, polished, sculpted, or otherwise surface-worked beyond simply being

cut.

Our builder customers include natural stone in their offering because it can be obtained within a feasible cost range for residential products -- or projects. And if imported natural stone from Brazil becomes more expensive the base becomes more -- base cost of homes with the -- sorry, could go up for the home builder, or more importantly, the home buyer.

The emphasis on affordable housing cannot be more important.

The negative impact on employment and profitability in our fabrication business and that of many other U.S. fabricators would also be substantial.

Accordingly, Wisenbaker requests the imports entering under HTS code 6802.93 be excluded from the scope of any duties imposed because of this Section 301 investigation.

MS. PASTER: Thank you.

Mr. Durbin, you have the floor.

MR. DURBIN: Good afternoon and thank you for the opportunity to testify before you today.

I'd like to state that we support the efforts of the administration to investigate acts, policies, and practices which may be unfair to the U.S.

My name is Jed Durbin and I serve as the Board -- serve on the Board of Directors with Portobello America.

I've spent my career in the U.S. tile manufacturing industry and as a longtime, lifelong Tennessean, I've seen firsthand the critical role manufacturing plays in supporting the rural communities and creating lasting economic opportunity.

Three years ago, Portobello opened a massive, almost one million square foot tile manufacturing facility in Baxter, Tennessee.

It was a $200 million investment in the U.S., and indeed, our factory is the largest manufacturing investment in Putnam County,

Tennessee's history.

It provides over 300 good paying jobs, and that doesn't include the indirect impact on the community.

Like any large factory, we also support local contractors, transportation providers, and suppliers.

The facility represents a major commitment to American manufacturing, and we're proud of the role, we play in strengthening Tennessee and growing our U.S. production capacity.

This entire investment, our $200 million investment, and the hundreds of jobs in Tennessee are now at risk.

No ceramic tile plant can produce every design specialty product from day one.

To meet the full range of customer needs, we need to supplement our U.S. production with a limited number of additional tile shapes and designs produced by our parent company in Brazil, Portobello Group, products that we do

not currently or are not currently able to produce in Baxter, Tennessee.

These imports don't compete with or replace our American-made tiles, instead, they support our U.S. facility by filling gaps in product portfolio, keeping our product line competitive and making it possible to operate efficiently at scale.

Indeed, without the ability to offer Brazilian tiles along with our Tennessee production, our investment in Tennessee will quickly become unviable.

Unfortunately, the 25 percent tariff proposed by the 301 investigation will place significant cost pressures on these imports.

And in fact, the Brazil imports have reduced 56 percent year over year since the 232 started last year at this time.

Section 301 tariffs on ceramic tile either on top or in place of other tariffs would only compound those challenges that already exist.

These tariffs would not bring new manufacturing jobs to Tennessee or shift production back to the U.S., at least in the tile sector, which isn't a contributor to the investigation.

Instead, they would weaken our successful high profile manufacturing investment, reducing sales, weakening operational efficiency and slowing future growth and hiring.

It also has forced the delay of and may even halt the future capital investment and hiring which was being planned for Q3 of this year. We've since put that off until Q3 next year.

Portobello Tennessee's facility is exactly the type of investment U.S. trade policy is meant to encourage, a state of the art factory that revitalizes a Tier 3 rural community, strengthens supply chains, and creates hundreds of jobs.

We are proud of what we have brought to

this investment in the U.S. and are deeply committed to its success.

But additional tariffs on ceramic tile from Brazil would undermine this achievement and harm the very manufacturing capacity policy makers want to promote.

We want to keep expanding in Tennessee, adding more production lines and making even more of our products here at home.

I respectfully ask and urge USTR to avoid imposing the 301 tariffs on ceramic tile codes HTSUS 6907.21, .22 and .23 so Portobello America can continue investing in the U.S., growing jobs, and building a strong future for our communities.

Thank you for your time and for consideration of the real world impacts of these measures on American manufacturers.

I will be glad to answer any questions.

MS. PASTER: Thank you, Mr. Durbin.

Mr. Santana, please go ahead.

MR. SANTANA: Greetings to His

Excellency Ambassador Jamieson Greer and to the representatives of the Office of the United States Trade Representative.

I'm Mario Santana and I'm here to testify on behalf of the Brazilian Association for Mechanically Processed Timber, and represent the interests of manufacturers and exporters of mechanically processed wood products, including plywood, moulding, lumber, doors, flooring, pellets, pallets, and related products.

Our members are important suppliers to U.S. construction and housing sectors, providing essential raw materials and semi-finished inputs that complement domestic production and support downstream economic activity in the United States.

The wood products under HTS Chapter 44 exported by ABIMCI members are critical inputs in U.S. construction, housing, remodeling, and furniture manufacturing sectors.

The products represented by ABIMCI are overwhelmingly derived from planted pine and

eucalyptus forests located in Southern Brazil, within the Atlantic Forest biome.

More than 98 percent of the sector's wood supply originates from cultivated forests rather than native forests and is subject to robust traceability and certification requirements, including compliance with internationally recognized FSC and PEFC standards.

The products covered by this request originated from a supply chain that is sustainable, traceable, certifiable, and based on planted forests, and therefore do not contribute to deforestation-related concerns addressed in this investigation.

Our core business is establishment, management, and sustainable utilization of the planted forest resources, rather than activities associated with deforestation.

ABIMCI products are subject of rigorous, document-based oversight nationwide, including CAR mapping and SINAFLOR transport

controls, ensuring full traceability and legal compliance.

The trade data confirms the structural importance of Brazilian supply to the U.S. market. Brazil is the major supplier of the mechanically processed wood products and occupies a structurally important position in Chapter 44 product categories.

While alternative suppliers exist, they often cannot replicate the Brazil combination of the scale, consistency, product availability, and competitive price, nor can they consistently meet U.S. construction specification performance standard at scale.

Replacing Brazil's supply would require a combination of the scale, consistency, product availability, and competitive pricing -– sorry.

Replacing Brazil supply would require diversification. Well, it's convenient to repeat, economic research consistently finds that tariff costs are largely borne by the domestic purchasers, rather than the foreign

exporters.

Because these products are industrial inputs, additional costs will be transmitted throughout downstream supply chains.

In a context where the United States already faces persistent pressure on the housing affordability, 25 percent of tariff on wood products would increase input costs across the U.S. construction and housing supply chains.

These cost increases would propagate through downstream sectors such as homebuilding, renovation, and furniture manufacturing, ultimately raising the final project and consumer prices.

Furthermore, transitioning alternative supply is not costless, as importers would need to identify and qualify new suppliers, conducting product testing, renegotiate contracts, and adjust logistics networks.

Imposing tariffs on mechanically processed wood products would not directly influence the elimination of the Brazil's acts,

policies, and practices.

As the intermediate inputs in wood-processing value chains, ABIMCI products are too far removed from these drivers for tariffs to meaningfully influence the underlying conduct.

Instead, the most likely effect would be trade diversion rather than changing environmental practices.

In conclusion, and for the reasons previously mentioned, ABIMCI respectively requests that mechanically processed wood products under HTS Chapter 44 be excluded for any additional tariffs adopted in this proceeding.

Thank you very much for the opportunity.

MS. PASTER: Thank you, Mr. Santana.

Mr. Marodin, please go ahead.

MR. MARODIN: Good afternoon, my name is Gian Carlo Marodin and I'm testifying today on behalf of the Ad Hoc Committee of Brazilian Moulding Producers.

Our wood moulding and millwork products are manufactured from reforested planted pine wood grown on internationally certified sustainable plantations in southern Brazil, far from the Amazon rainforest, that do not contribute to deforestation.

And we stand here today with the support of several U.S. importers and distributors whose businesses are intrinsically connected with Brazilian wood mouldings.

I am here to respectfully urge USTR to exempt these products from the proposed 25 percent tariff and to explain why this exemption is essential for American business workers, home builders, contractors, and homeowners.

First, let me provide some important context. Wood mouldings and millwork products are essential inputs for the U.S. residential construction and repair and remodeling markets.

These are the baseboards in American homes, the door casings in American apartments, the crown mouldings in American buildings.

If you look around this hearing room, you will see wood mouldings that help create its distinctive character.

USTR's criteria for exemptions recognize that tariffs should not apply where products cannot be produced in sufficient quantities domestically, cannot be obtained from alternative sources at reasonable prices, or where tariffs will cause economy-wide disruptions.

Brazilian wood mouldings satisfy every one of these criteria.

Let me start with domestic production capacity. The U.S. would wood moulding industry simply does not have the capacity to supply the American market.

This is not a new problem and it's not one that tariffs can solve.

Imports have always accounted for a significant share of the U.S. market. And even if every domestic mill operated at full capacity, they could not come close to meeting

American demand.

This deficit reflects fundamental constraints. U.S. lumber is grown primarily for structural building purposes and it's tougher and less elastic than the quick-grown Brazilian pine optimal for fine-finish millwork.

Brazilian lumber fills the specialized niche that U.S. mills cannot supply.

Turning now to the direct harm to the American businesses and workers. Several U.S. companies have submitted letters supporting this exemption request, other companies filed their own comments.

They tell the same story. Read, for example, the cogent comment by Jubilee Builders or Builders FirstSource discussing the dire consequences to American homebuilders in reduced investments, delay of projects, increased costs, and risk of unemployment all across the country.

These are real American workers whose livelihoods are at stake, and these businesses are often significant local employers and

contributors to regional economies. The proposed tariffs would threaten all of this.

The harm also extends to American homebuilders, contractors, and ultimately to families trying to buy or renovate homes.

Because comparable domestic alternatives are unavailable in sufficient quantity, homebuilders and contractors will pay significantly more.

These costs will inevitably be passed on to home buyers and homeowners. At a time when housing affordability is already a national crisis, these tariffs would function as a direct tax on American consumers.

Some might ask, can’t American buyers simply source these products elsewhere?

The answer is no, not at reasonable prices and not in sufficient quantities.

China has been found to have dumped its products in the U.S. market.

Imposing tariffs on fairly traded imports from Brazil would have the perverse

consequence of pushing the U.S. market toward Asian producers with significant ties to China.

In conclusion, the proposed 25 percent tariff on Brazilian wood mouldings would fail to achieve any legitimate trade policy objective while causing substantial harm to American businesses, workers, and customers.

Thank you for your time and consideration. I'm happy to answer any questions.

MS. PASTER: Thank you very much.

Okay, with that, we'll turn it over to our agency colleagues for questions.

MS. MAPATANO: Good afternoon, my name is Dawn Mapatano from the Office of Global Affairs, Department of Health and Human Services.

And I have a question for the full panel, and if we could please start with you, Mr. Cruz.

Can you please elaborate on the extent to which the product for which you request an

exemption is available from alternative sources, including from domestic and non-Brazilian third country sources at comparable prices and quantities?

And I'm happy to repeat the question if folks would like.

MR. CRUZ: Thank you very much for the question.

Well, yes, there are other sources of natural stone, but allow me to elaborate a little more.

Natural stone is not a standardized commodity. Each geological deposit produces materials with unique colors, patterns, technical properties, and performance characteristics.

For that reason, one stone cannot always replace -- can be replaced by another simply because it falls under the same category or classification.

Many Brazilian natural stones have already been selected and specified by American

architects, designers, builders, distributors, fabricators, and homeowners for specific projects.

In those cases, changing the source of supply may require new material selection, redesign, additional testing, customer approval, and adjustments in fabrication and installation.

That will definitely lead to a higher cost, delays, canceled orders, inventory loss, and disruption throughout the American supply chain.

MR. HIEB: You know, from my vantage point, a lot of what Mr. Cruz said, I would echo.

As I said in my testimony, you know, there's this ongoing debate about can the domestic market, you know, take over?

And it's just not the case for natural stone. There are beautiful natural stones produced in the United States. My home state is South Dakota, you know, I've walked the halls here in Washington, D.C.

But what's coming out of Brazil is fueling the residential countertop market and there really isn't a replacement that could meet that demand.

Are there granites, are there marbles, are there other natural stones coming out of other countries? Absolutely.

But the aesthetics, the color, the demand of the designers and the architects, it's just not the same.

There are great natural stones from a lot of countries, but there are certain niches that they fit into.

And so, I just don't see how other countries can meet the demand of what's out there from Brazil.

So, thank you.

MS. EDMONDS: Kind of sounds redundant, but the same things, mainly, the only thing I would add is consistency.

Some of the life of the forests that are in Brazil are very longstanding, they're

very well-known products that have been in the market for a long time.

So, it's not exactly replaceable for that consistent color that's been known over time with something else either domestically or from another country.

It's very important.

MR. DURBIN: Well, for the tile industry there -- I think Ms. Coluchi in Panel Ten is also a tile representative.

For domestic capacity, basically, all the domestic suppliers are at capacity. There's no other supply from domestic possibilities.

In fact, our imports are 72 percent of our demand. So, we only supply about 28 percent of it.

And ironically, the steel tariffs are keeping us from investing in new equipment because it's adding 25 percent or so to equipment, which takes four to five years for us to build a new factory to support that demand.

And alternatively, from other

countries, there are other countries. Spain and Italy aren't in the same price category as Brazil and other importers.

And then, in the same price category as Brazil, you have Turkey, India, and Mexico which are all in about -- well, India's much lower but Mexico, Turkey, and Brazil are very similar at around the 90 cent range.

But with the tariff on Brazil, it's, again, that's what's supporting the 56 percent reduction in import from Brazil right now.

MR. MARODIN: So, let me start naming a little bit about domestic capacity.

So, the ITC itself, on the -- on the investigation of the antidumping on China, so there was a recent sunset review from the five years.

So, I'm familiar because Brazil was in the beginning of the investigation phase and it was concluded that Brazil was traded at fair value and was removed from the antidumping, this was in 2020, I was personally -- my company was

one of the respondents so I'm very familiar with that.

So, at that time, the capacity that ITC found was that U.S. producers would have a capacity of about 20 percent, that was around 2019.

The numbers of capacity in 2025 were found to be close to 40 percent, but that's not because of the domestic producers' expanded capacity, but because the housing industry is at a low point.

It's everybody knows that it's in a recession phase so the demand is much lower now.

So, this is why comparable, you can try to say, okay, but U.S. capacity increased, no, the demand is that reduced.

But when you have, fortunately, everybody's expecting that the housing industry would recover and lead a growing cycle again, on GDP for America.

We are all really aware that housing industry is what moves the growth of this

country. That capacity would, again, be something close to more than 20 percent, this is looking at the U.S.

If you look again now at, okay, which are the countries are supplies these products to U.S.?

So, Brazil and Chile are the main countries individually with, let's say, on average, it changed a lot last year because of the 40 percent tariff on Brazil, it had a huge impact in the second semester.

So, it's really decreased the market share of Brazil.

But it used to be close to 25 to 28 percent between Chile and Brazil.

Chile, speaking about Chile, Chile's not a country that is interested in this niche market. There was some declaration already from two big producers of Chile, CMPC and Arauco, they are putting a lot of investment on paper industries, pulp industries, MDFs, particle boards, which is other wood forest products and

not the millwork itself.

And then, okay, where did the -- where the supply went? The supply went to Asia.

So, after the antidumping was imposed to China, these mills that were in China, they went -- they were transferred -- physically transferred and still owned by Chinese businessmen to the neighboring countries.

So, they are now operating in Vietnam, in Cambodia, in Malaysia, even in Indonesia.

And at some part with wood, that it's been transferred from China itself and sometimes, wood that is from Russian border to China and then, into this country.

So, that's basically the geography of where the supply is today and what happened in this last year was basically that strong role of Asia's supply.

MR. SANTANA: I'm talking about the characteristics of the forest. Brazilian forest is fast growing trees.

Eucalyptus, you can harvest at seven

times 50 meters. It's not fit, it's not make sense to utilize one pine, for instance in the U.S. with eight years to of kind for fencing for kind of products of this.

This is possible, it's possible, however, it's not economical in any way.

So, Brazilian forest has one characteristic for some kinds of products and it works as complementary of the whole chain in America.

There's another opportunity of course looking to the forest, New Zealand, you cannot grow more for pine, Chile cannot, Australia has problem of desert and lack of water for more plantation.

South Africa is enough, there is no more space.

There is Russia, there's any doubts and it's not secure way to supply wood.

So, another point is all Brazilian plantation is just in one country, you can track, you can face all the things happen and

with the sustainable basis.

And the products produced, there is chain of custody in all always.

So, you can talk a lot more, but if you -- if I answer your question, I am not going to give you any doubts again, okay.

MS. MAPATANO: Thank you.

MS. PASTER: All right, thank you very much, everyone.

That of course is our final panel, so with that, I just want to thank all of the witnesses on this panel and of course all of the panels today and yesterday.

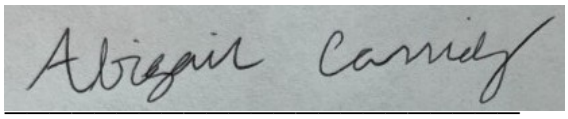
I'd also like to thank our colleagues from all the agencies that were here helping to ask questions.

We're adjourned, thank you.

(Whereupon, the above-entitled matter went off the record at 4:56 p.m.)

C E R T I F I C A T E

This is to certify that the foregoing transcript was duly recorded and accurately transcribed under my direction; further, that said transcript is a true and accurate record of the proceedings; and that I am neither counsel for, related to, nor employed by any of the parties to this action in which this matter was taken; and further that I am not a relative nor an employee of any of the parties nor counsel employed by the parties, and I am not financially or otherwise interested in the outcome of the action.



Abigail Cassidy

Exhibits

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